Supreme Court, U.S.
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In The

Supreme Court of the United States

October Term, 1997

BETH ANN FARAGHER

Petitioner,

vs.

THE CITY OF BOCA RATON, a political subdivision of the State of Florida,

Respondent.

Petition for a Writ of Certiorari to the United States Court of Appeals for the Eleventh Circuit

PETITION FOR A WRIT OF CERTIORARI

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QUESTION PRESENTED FOR REVIEW

I. Is an employer, pursuant to common-law principles of agency, responsible for hostile-environment sexual harassment committed by supervisory employees who use their supervisory status to effect the harassment?

II. May a fact-finder infer notice to an employer of hostile-environment sexual harassment:

A. from the same pervasive nature of the harassment that makes it actionable?

B. by default through its failure to effectively disseminate any sexual harassment policy and instructions about how and to whom victims should complain?

C. through actual notice to an intermediate supervisor, who reports it no further?

LIST OF PARTIES

The parties to the proceedings in the court whose judgment is sought to be reviewed here include those who appear in the caption of the case, as well as Nancy Ewanchew, who was a co-plaintiff, and Bill Terry and David Silverman, who were co-defendants with the City of Boca Raton. There is no parent or subsidiary of any party to be listed.

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II. The United States Court of Appeals for the Eleventh Circuit has decided important questions of federal law concerning notice to employers of hostile-environment sexual harassment, ones which should be, but have not been, decided by this Court, i.e.:

- whether the same pervasiveness that makes sexual harassment actionable also serves to put an employer on constructive notice?

- whether the failure to effectively disseminate a sexual harassment policy gives rise to constructive knowledge?

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No.

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Petition for a Writ of Certiorari to the United States Court of Appeals for the Eleventh Circuit

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PETITION FOR A WRIT OF CERTIORARI

Petitioner, Beth Ann Faragher, respectfully petitions for a writ of certiorari to review the judgment of the United States Court of Appeals for the Eleventh Circuit.

OPINIONS BELOW

The opinions of the Court of Appeals are reported at 76 F.3d 1155 (11th Cir. 1996) and 111 F.3d 1530 (11th Cir. 1997) (*en banc*) and are reproduced in the Appendix filed herewith ("App.") at 41a and 1a. The opinion of the district court is reported at 864 F.Supp. 1552 (S.D. Fla. 1994) and is reproduced at 69a.

STATEMENT OF JURISDICTION

The first decision of the United States Court of Appeals for the Eleventh Circuit was rendered on February 8, 1996, and was vacated May 13, 1996, 83 F.3d 1346 (11th Cir. 1996). The *en banc* Court of Appeals decision was rendered April 15, 1997 and amended April 28, 1997.

The Court, through Mr. Justice Kennedy, on July 9, 1997, granted petitioner an extension of time until and including August 13, 1997, within which to file this petition for writ of certiorari.

The jurisdiction of this Court is invoked under 28 U.S.C. § 1254(1).

STATUTE INVOLVED IN THIS CASE

The pertinent provision of Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. § 2000e, *et seq.*, (Title VII), is set forth below:

§ 2000e-2. Unlawful employment practices

(a) Employer practices

It shall be an unlawful employment practice for an employer —

> (1) to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin; or
>
> (2) to limit, segregate, or classify his employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's race, color, religion, sex, or national origin. . . .

STATEMENT OF THE CASE

The facts of the case and the procedural background are as set forth in the *en banc* opinion of the circuit court of appeals:

> I. Facts[1]
>
> Beth Ann Faragher worked as an ocean lifeguard for the City of Boca Raton, Florida (City), in the Parks and Recreation Department's Marine Safety Section. The City employed Faragher intermittently from

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1. The facts are essentially drawn from the district court's Findings of Fact.

September 1985 until June 1990. During these five years, Bill Terry and David Silverman acted as supervisors of the ocean lifeguards, Terry as Chief of the Marine Safety Section and Silverman as a Marine Safety lieutenant and then captain. Terry had the authority to supervise all aspects of the lifeguards' work assignments; to give oral reprimands and place reports of disciplinary actions in personnel files; and to interview and select new lifeguards, subject to approval by higher management. Silverman supervised the lifeguards' daily duties, including designating work assignments and supervising physical fitness routines.

The Marine Safety Section was organized according to a clear chain of command. Lifeguards reported to Marine Safety lieutenants, and above them to captains; the captains reported directly to the Chief of the Marine Safety Section, who was directly supervised by the Recreation Superintendent; the Recreation Superintendent reported to the Director of Parks and Recreation, who reported to the City Manager. Lifeguards had little contact with City officials. Marine Safety Headquarters was at the beach — in a remote location, far away from City Hall.

Marine Safety Chief Terry subjected Faragher and another lifeguard, Nancy Ewanchew, to uninvited and offensive touching, and lieutenant Silverman made

offensive comments and gestures to both Faragher and Ewanchew. In particular, Faragher testified that over the course of her five years of employment Terry touched her shoulders or waist on a number of occasions, patted her thigh once in April 1990, and slapped her on the rear end. Ewanchew testified about two specific incidents where Terry touched her in a sexually offensive manner. However, neither Faragher nor Ewanchew complained to Parks and Recreation Department management about Terry's and Silverman's conduct while they were employed with the City or when they resigned. They both did speak about Terry's and Silverman's conduct with one of their supervisors, Marine Safety lieutenant and Training Captain Robert Gordon. In fact, most of the female lifeguards complained to Gordon about Silverman's language and conduct. The lifeguards did not speak with Gordon on a subordinate to superior basis; they spoke with him as a friend whom they held in high repute. Gordon did not report the complaints to his supervisor, Terry, or to any other City official.

Ewanchew resigned from her position with the City in April of 1989, saying that she was leaving because she had found a better job. Faragher resigned in June of 1990 to attend law school. In April of 1990, Ewanchew wrote a letter to the City's Director of Personnel complaining

that she and other female lifeguards had been sexually harassed by Terry and Silverman while she was employed by the City. The City did not know about Terry's and Silverman's conduct until receiving Ewanchew's letter. The City then investigated Ewanchew's complaint and determined that Terry and Silverman had engaged in some inappropriate conduct. The City reprimanded and disciplined them both.

II. Procedural background

In 1992, Faragher sued the City, Terry, and Silverman. Faragher sued the City for sexual harassment under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e *et seq.* (Count I). Faragher sued Terry and Silverman for sexual harassment under 42 U.S.C. § 1983 (Counts II and III). Faragher also asserted pendent state law claims, suing Terry for battery (Counts IV and V) and the City for negligent retention and supervision of Terry (Counts VI and VII). The district court held a non-jury trial on all claims.

The district court entered judgment for Faragher on her Title VII claim against the City, awarding her $1 in nominal damages.[2] The court held that Terry's and Silverman's offensive conduct was sufficiently severe and pervasive to alter the conditions of Faragher's employment by

creating a hostile work environment. The court held that the City was directly liable for Terry's and Silverman's conduct under agency principles based on Terry's and Silverman's supervisory authority and the overall workplace structure. In addition, the court held that the City was indirectly liable for Terry's and Silverman's offensive conduct because the conduct was severe and pervasive and supported "an inference of knowledge, or constructive knowledge, on the part of the City regarding Terry's and Silverman's sexual harassment." (R.6-166 at 23.) Faragher appealed and the City cross appealed. A panel of this court reversed the district court's judgment for Faragher on her Title VII sexual harassment claim against the City, but

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2. The district court awarded Faragher $10,000 in compensatory damages on her § 1983 claim against Terry and Silverman, jointly and severally, and $500 in punitive damages on her battery claim against Terry. Additionally, the district court entered judgment for Ewanchew on her battery claim against Terry and awarded her $35,000 in compensatory damages and $2,000 in punitive damages.

> affirmed the judgment in all other respects. *Faragher v. City of Boca Raton*, 76 F.3d 1155 (11th Cir. 1996). That panel opinion was vacated and rehearing en banc was granted. *Faragher v. City of Boca Raton*, 83 F.3d 1346 (11th Cir. 1996).

111 F.3d at 1533-1534. n. 1, n. 2 (App. at 103a-104a).

The Circuit Court of Appeals had jurisdiction pursuant to 28 U.S.C. § 1291 to review the district court's final decision.

The *en banc* court, in a 7-5 decision with three dissents, then reversed the district court on the issue of Title VII liability, holding:

> ***One***, the city was not indirectly, or vicariously, liable because neither Terry or Silverman was acting within the scope of his employment when he perpetrated the sexual harassment or was aided in perpetrating the harassment by the existence of any agency relationship with the city.
>
> ***Two***, the city was not directly liable because it neither knew, nor should have known, about the sexual harassment—notwithstanding that the sexual harassment was pervasive, that the city had failed to effectively disseminate its sexual harassment policy, and that Faragher and Ewanchew (as well as other women) had reported it to another lifeguard captain.

REASONS FOR GRANTING THE WRIT.

I.

The United States Court of Appeals for the Eleventh Circuit has entered a decision that is in conflict with the decision of at least two other United States courts of appeals on the issue of how the principles of agency should be applied in hostile environment sexual harassment cases.

The Court should grant the petition for a writ of certiorari to establish uniformity amongst the circuits in the application of the agency principles to which this

Court commended the lower courts in *Meritor Savings Bank v. Vinson*, 477 U.S. 57 (1986). [1], [2]

---

[1] This Court in *Meritor* "decline[d]... to issue a definitive rule on employer liability, but... agree[d] with the [Equal Employment Opportunity Commission] that Congress wanted courts to look to agency principles for guidance in this area." 477 U.S. at 72.

> [W]hile such common law principles may not be transferable in all their particulars to Title VII, Congress' decision to define "employer" to include any "agent" of an employer, 42 U.S.C. § 2000e(b), surely evinces an intent to place some limits on the acts of employees for which employers under Title VII are to be held responsible. For this reason, we hold that the Court of Appeals erred in concluding that employers are always automatically liable for sexual harassment by their supervisors. *See generally* Restatement (Second) of Agency, §§ 219-237 (1958). For the same reason, absence of notice to an employer does not necessarily insulate that employer from liability. *Id.*

Id.

[2] Section 219 of the Restatement (Second) of Agency provides as follows:

> (1) A master is subject to liability for the torts of his servants committed while acting in the scope of their employment.
>
> (2) A master is not subject to liability for the torts of his servants acting outside the scope of their employment, unless:
>
> (a) the master intended the conduct or the consequences, or
>
> (b) the master was negligent or reckless, or

(continued...)

The circuits now conflict. Division exists between the Eleventh[3] and District of Columbia Circuits[4] on one side, and the Second[5] and Tenth[6] Circuits on the other.[7]

The court below held that, as it interprets the principles of agency, there are only three ways that a n employer can be indirectly liable for the conduct of its agents:

> [G]enerally, an employer may be indirectly liable for hostile environment sexual

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[2](...continued)

> (c) the conduct violated a non-delegable duty of the master, or
>
> (d) the servant purported to act or to speak on behalf of the principal and there was reliance upon apparent authority, or he was aided in Accomplishing the tort by the existence of the agency relation.

[3] *Faragher* v. *the City of Boca Raton*, 111 F.3d 1530 (11th Cir. 1997) (*en banc*).

[4] *Gary v. Long*, 59 F.3d 1391 (D.C. Cir. 1995), *cert. denied*, ___ U.S. ___, 116 S.Ct. 569, 133 L.Ed.2d 493 (1995).

[5] *Torres v. Pisano*, 116 F.3d 625 (2nd Cir. 1997); *Karibian v. Columbia University*, 14 F.3d 773, 780 (2nd Cir.), *cert. denied*, 512 U.S. 1213 (1994).

[6] *Harrison v. Eddy Potash, Inc.*, 112 F.3d 1437 (10th Cir. 1997); *Hicks v. Gates Rubber Co.*, 833 F.2d 1406 (10th Cir. 1987).

[7] *See Davis v. City of Sioux City*, 115 F.3d 1365, 1372 (8th Cir. 1997) Arnold, C.J., dissenting, for a fuller collection of cases on both sides of the issue.

> harassment by a superior: (1) if the harassment occurs within the scope of the superior's employment; (2) if the employer assigns performance of a non-delegable duty to a supervisor and an employee is injured because of the supervisor's failure to carry out that duty; or (3) if there is an agency relationship which aids the supervisor's ability or opportunity to harass his subordinate. *See* Restatement (Second) of Agency § 219(1), (2)(c), (2)(d).

Faragher, 111 F.3d at 1534.

In its discussion of the agency issue, the court of appeals even pointed out the differences in the ways in which the several circuits apply the agency principles to which this Court referred them in *Meritor*:

> Subsequent to *Meritor*, the circuits differ on the appropriate test to apply in a hostile work environment case involving sexual harassment of an employee by the employer's supervisor. *See, e.g., Kauffman v. Allied Signal*, 970 F.2d 178, 184 (6th Cir. 1992)(holding that the plaintiff must establish that a supervisor's harassment was within the scope of his employment and that the employer failed to respond adequately and effectively when it learned of the harassment); *Paroline v. Unisys Corp.*, 879 F.2d 100, 104, 106-07 (4th Cir. 1989), *vacated in part*, 900 F.2d 27 (4th Cir. 1990)(holding that the proper inquiry is whether the individual defendant served in a supervisory position in which he

> exercised "significant control over the plaintiff's hiring, firing or conditions of employment;" and, if not, whether employer had actual or constructive knowledge of the existence of a hostile work environment and took no prompt and adequate remedial steps); *Hicks v. Gates Rubber Co.*, 833 F.2d 1406, 1418 (10th Cir. 1987)(holding that employer liability could arise under the principles of Restatement § 219(2) if: (1) the employer was negligent or reckless; or (2) the employee relied on the supervisor's apparent authority; or (3) the supervisor was aided in his harassment by the existence of the agency relationship); *Andrews v. City of Philadelphia*, 895 F.2d 1469, 1486 (3rd Cir. 1990)(holding that the plaintiff must prove that management level employees had actual or constructive knowledge about the existence of a sexually hostile environment and failed to take prompt and adequate remedial action); and *EEOC v. Hacienda Hotel*, 881 F.2d 1504, 1515-16 (9th Cir. 1989)(holding that "employers are liable for failing to remedy or prevent a hostile or offensive work environment of which management-level employees knew, or in the exercise of reasonable care should have known").

This Circuit has concluded that in a pure hostile environment case, a supervisor's harassing conduct is typically outside the scope of his employment. *See*

> *Steele*,[8] 867 F.2d at 1311 (11th Cir. 1989); *accord Andrade v. Mayfair Management, Inc.*, 88 F.3d 258, 261 (4th Cir. 1996)(holding that illegal sexual harassment is an illegitimate corporate activity, beyond the scope of the supervisor's employment)....

111 F.3d at 1535-1536 (App. at 9a).

The court of appeals then moved to the use-of-agency issue, aligning itself with the Court of Appeals for the District of Columbia Circuit in adopting a restrictive view of a perpetrator's use of his agency to accomplish sexual harassment and stating that

> [I]n one sense, a supervisor is always aided in accomplishing hostile environment sexual harassment by the existence of an agency relationship with his employer because his responsibilities include close proximity to and regular contact with the victim. *Gary v. Long*, 59 F.3d 1391, 1397 (D.C. Cir.), cert. denied __U.S. __, 116 S.Ct. 569 (1995). However, the common law rule does not use "aided" in such a broad sense. Rather, the employer is liable only if the harassment is accomplished by an instrumentality of the agency or through conduct associated with the agency status.

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[8] *Steele v. Offshore Shipbuilding, Inc.*, 867 F.2d 1311 (11th Cir. 1989).

> *Id.* [Footnote omitted.] In *Sparks*,[9] for example, the harasser used the authority delegated to him by the company to assist in the harassment: He repeatedly reminded the victim that he could fire her if she refused his advances. *Sparks*, 830 F.2d at 1560; *see also Steele*, 867 F.2d at 1317 (limiting holding of *Sparks* to situations involving both quid pro quo and hostile environment harassment).

After the court of appeals rendered its *en banc* decision, the Court of Appeals for the Tenth Circuit, in the *Harrison v. Eddy Potash, Inc.*, 112 F.3d 1437 (10th Cir. 1997), while not mentioning the case at bar, criticized *Gary*, upon which the *en banc* majority based its reasoning, and suggested that the better view of the application of agency principles to hostile environment sexual harassment cases is that more expansive one set out in *Karibian v. Columbia University*, 14 F.3d 773, 780 (2nd Cir.), *cert. denied*, 512 U.S. 1213 (1994) ("[A]n employer is liable for the discriminatorily abusive work environment created by a supervisor if the supervisor uses his actual or apparent authority to further the harassment, or if he was otherwise aided in accomplishing the harassment by the existence of the agency relationship....). The *Harrison* court, applying a different analysis to § 219 of the Restatement of Agency than either the *en banc* court or the *Gary* court, set forth a considerably more expansive list of criteria under which a corporate employer might be held liable:

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[9] *Sparks v. Pilot Freight Carriers, Inc.*, 830 F.2d 1554 (11th Cir. 1987).

In summary, an employer in this circuit can be held liable under Title VII for hostile work environment sexual harassment committed by one of its supervisors if any of the following conditions are met:

1) The supervisor committed the harassment while acting in the scope of his employment. *See* Restatement (Second) of Agency § 219(1). (As previously indicated, this will rarely be a basis for employer liability.)

2) The employer knew about, or should have known about, the harassment and failed to respond in a reasonable manner. *See* Restatement (Second) of Agency § 219(2)(b).

3) If the employer manifested in the supervisor the authority to act on its behalf, such manifestation resulted in harm to the plaintiff, and the plaintiff acted or relied on the apparent authority in some way. *See* Restatement (Second) of Agency § 219(2)(d), clause 1.

4) If the employer delegated the authority to the supervisor to

> control the plaintiff's work environment and the supervisor abused that delegated authority by using that authority to aid or facilitate his perpetration of the harassment. *See* Restatement (Second) of Agency § 219(2)(d), clause 2.

Harrison, 112 F.3d at 1446.

The Second Circuit Court of Appeals, meanwhile, on June 3, 1997, articulated a slightly different set of standards in *Torres v. Pisano*, 116 F.3d 625 (2nd Cir. 1997), but one more closely in line with the *Harrison* standards than with the standards articulated in the case at bar and based generally on the notion expressed in *Karibian*. The *Torres* court stated:

> To recap, an employer will be held liable for the harassment perpetrated by one of its supervisors if:
>
> a) the supervisor was at a sufficiently high level in the company, or
>
> b) the supervisor used his actual or apparent authority to further the harassment, or was otherwise aided in accomplishing the harassment by the existence of the agency relationship, or

c) the employer provided no reasonable avenue for complaint, or

d) the employer knew (or should have known) of the harassment but unreasonably failed to stop it.

Torres, 116 F.3d at 625 (footnotes omitted). The *Torres* court then discussed a supervisor's use of his agency as follows:

> Thus, in order to establish liability on the theory that the supervisor exploited the agency relationship in committing the harassment, a plaintiff "must allege facts which establish a nexus between the supervisory authority" and the harassment. *Tomka*,[10] 66 F.3d at 1306.... Cases in which it has been held that the supervisor was aided in the harassment by the existence of the agency relationship have universally involved a more direct use of authority than Torres has pointed to in this case. *See e.g.*, *id.* at 1306-07 (supervisor convened business dinner and implied that employees were required to attend; supervisor then fostered alcohol consumption at the dinner, which led to sexual assault); *Karibian*, 14 F.3d at 776 (supervisor told plaintiff that she "owed him" for all that he had done for her as her supervisor, and varied "her raises, hours,

[10] *Tomka v. Seiler Corp.*, 66 F.3d 1295 (2nd Cir. 1995).

> autonomy and flexibility" according to her responsiveness to his sexual advances); *Martin v. Cavalier Hotel Corp.*, 48 F.3d 1343, 1352-53 (4th Cir. 1995) ("[Plaintiff] specifically testified that [her supervisor] relied upon the authority vested in him by [the employer] to coerce her to comply with his demands. [The supervisor] assertedly told [plaintiff] that if she failed to submit to him she would lose her job, and [plaintiff] testified that she knew that if she had reported [the supervisor's] conduct to anyone she would have been fired."); *DiLaurenzio*,[11] 926 F. Supp. at 315-16 (supervisor ordered employees to call plaintiff at her home to harass her on days when she was sick; supervisor also threatened to retaliate against any employee who complained)....

Torres, 116 F.3d at 625 (brackets, other than footnotes, in original).

In the instant case, the *en banc* majority — after setting forth in the statement of facts the wide bounds of Terry and Silverman's sway, which one dissenter referred to as "virtually unchecked authority over the work environment" and another characterized as "complete authority to set the workplace environment" — discounted the perpetrators' use of their agency to effect the harassment, stating:

> No person threatened to fire or demote Faragher for refusing to

[11] *DiLaurenzio v. Atlantic Paratrans, Inc.*, 926 F. Supp. 310, 314 (E.D.N.Y. 1996).

> accommodate Terry's and Silverman's harassing overtures. Moreover, the harassment cannot reasonably be viewed as conduct associated with Terry's and Silverman's status as agents of the City.... And there is no evidence that either Terry or Silverman made any employment decisions based upon Faragher's response to their sexual overtures....

Faragher, 111 F.3d at 1537; App. at 13a.

Such reasoning establishes within the Eleventh Circuit a higher hostile-environment burden than elsewhere, virtually requiring a plaintiff to make out a *quid pro quo* case to impose liability on a corporate defendant for its supervisor's behavior. It ignores the principles of agency that this Court directed in *Meritor* be followed. For as the *Harrison* court observed, "the fact that the supervisor has actual or apparent authority to control the victim's working conditions, and is aided in harassing the victim by that authority, is sufficient to establish employer liability under the second clause of § 219(d)(2)." *Harrison*, 112 F.3d at 1450.

The divergence of the two lines of authority, *Faragher* and *Gary* on the one hand, and *Torres/Karibian* and *Harrison/Hicks* on the other, requires this Court's intervention through the grant of the writ to the Eleventh Circuit to achieve uniformity amongst the circuits.

II.

The United States Court of Appeals for the Eleventh Circuit has decided important questions of federal law concerning notice to employers of hostile-environment sexual harassment, ones which should be, but have not been, decided by this Court, i.e.:

- **whether the same pervasiveness that makes sexual harassment actionable permits a fact-finder to infer constructive notice to the employer?**
- **whether the failure to effectively disseminate a sexual harassment policy gives rise to constructive knowledge?**
- **whether the actual knowledge of an employer's "agent" who is not part of "higher management" constitutes notice to the employer?**

The Court should grant the Petition for a Writ of Certiorari and should decide what constitutes knowledge of hostile-environment sexual harassment by an employer. That question has not been, but should be, settled by this Court.

While the circuits appeared previously to be in agreement on what constituted actual or constructive knowledge of hostile-environment sexual harassment, and while the Court of Appeals for the Eleventh Circuit appeared to be in line with them, *see Henson v. City of Dundee*, 682 F.2d 897 (11th Cir. 1982), the *en banc* court's opinion raises, and resolves, the following novel issues adversely to plaintiffs:

One, does a fact-finders determination of the "pervasiveness" that is necessary under *Harris v. Forklift Systems, Inc.*, __U.S. __, 114 S.Ct. 367, 126 L.Ed.2d 295 (1993) for workplace behavior to be actionable permit an inference of constructive knowledge on the part of the employer.

Two, does a failure to effectively disseminate a sexual harassment policy – which the district court found to have occurred – give rise to constructive knowledge on the part of the employer.

Three, does actual notice to a supervisor, whom the district court characterized as not being part of "higher management," *Faragher*, 864 F.Supp. at 1556; at 72a, constitute actual knowledge by the employee.

The Equal Employment Opportunity Commission sexual harassment guidelines provide in pertinent part:

> With respect to conduct between fellow employees, an employer is responsible for acts of sexual harassment in the workplace where the employer (or its agents or supervisory employees) knows or should have known of the conduct, unless it can show that it took immediate and appropriate corrective action.

29 C.F.R. § 1604.11(d).

While the courts of appeals generally have parroted the know-or-should-have-known mantra, none have sought to define it as did the court of appeals in the instant case.

On the pervasiveness issue, the court below stated that "[a]ccording to the [district] court, the pervasiveness analysis applicable to finding that the work environment

was abusive is the same as the analysis required to show the employer's knowledge." 111 F.3d at 1538; App. at 15a-16a. The court of appeals then went on to hold:

> We agree with the district court that the analyses are the same to the extent that a court must evaluate the totality of the circumstances both in determining whether the work environment was abusive and in determining whether the conduct was pervasive enough to put the employer on notice. But we do not agree with the district court's apparent belief that simply because conduct is pervasive enough to create an abusive work environment the employer should be charged with knowledge of the conduct. The question of notice to the employer is distinct from the question of the environment's abusiveness. Thus, the district court erred to the extent that it conflated the two inquiries.[10]
>
> ---
>
> 10. It does not follow in this case that because there was an abusive environment the City necessarily had constructive knowledge of Terry's and Silverman's harassment. However, there may be other cases in which the same level of pervasiveness can support a finding both of hostile environment and constructive notice.

111 F.3d at 1538 & n. 10.

As is noted by one of the dissenters: "However, there is no support in either logic or the law for such a proposition. The majority can cite to no case which holds

that the same level of pervasiveness cannot support the same finding of a hostile environment and constructive notice...." 111 F.3d at 1540, Barkett, J., dissenting; App. at 21a-22a. "Moreover," the dissent observed, "the majority seems to collapse the two distinct inquiries of actual knowledge and constructive knowledge into one, requiring actual knowledge before imposing liability...." Id. at 1540-1541; App. at 22a.

The court of appeals gave cursory treatment to the city's failure to effectively promulgate any sexual harassment policy,[12] dismissing it thus in a footnote:

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[12] The district court stated in its findings of fact the following concerning the sexual harassment policy:

> 51. The City had a written sexual harassment policy, promulgated on February 26, 1986. The policy was contained in a memorandum from the City Manager, addressed to all employees. On May 7, 1990, the City revised and reissued its policy against sexual harassment in the form of a Personnel Policy and Procedure memorandum.
>
> 52. Notwithstanding the existence of a written policy against sexual harassment, the Court finds a complete failure on the part of the City to disseminate said policy among Marine Safety Section employees. Neither Terry nor Silverman were ever told or made aware of the City's sexual harassment policy prior to [the City's personnel director's] investigation of Ewanchew's charges. Ewanchew herself never got a copy of the sexual harassment policy during her tenure with the City. The City, therefore, did not discharge its duty under the [Equal Employment Opportunity Commission] guidelines regarding the maintenance of an effective sexual harassment policy.

(continued...)

> There is some evidence that the City did not effectively disseminate among Marine Safety employees its sexual harassment policy. The district court did not find that the City would have known about the harassment if it had effectively disseminated this policy; and indeed, the record indicates that failure to disseminate this policy was not the reason why the City did not know about the harassment.

111 F.3d at 1538, n. 11.

One of the dissenters on the court of appeal underscored the mischief that the majority's treatment of the issue could set loose:

> [T]he City had a policy against sexual harassment in the workplace. The City, however, did not communicate the policy to the employees of the Marine Safety Section or identify the person to whom complaints

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[12](...continued)

> 53. The same union bargaining unit has represented the lifeguards and lieutenants working for the marine Safety division since sometime before 1985. The unit has a collective bargaining agreement with the city, which includes an employee grievance and arbitration procedure. Faragher and Ewanchew did not initiate grievance proceedings. In light of the City's lack of dissemination of its sexual harassment policy, the Court finds that Faragher and Ewanchew's failure to avail themselves of grievance proceedings, in and of itself, does not excuse the City from responsibility for the conduct of Terry and Silverman.

864 F.Supp. at 1560-61 , App. at 83a-84a.

> of sexual harassment were to be made. Thus, the City effectively concealed from those employees the avenue for redress of grievances. This concealment troubles me for three reasons. First, I fear that the court's opinion dilutes the employer's duty under Title VII to maintain a workplace free of severe and pervasive sexual harassment. Second, the court's opinion places an undue burden on employees who wish to complain of harassment in the workplace. Third, the court's opinion has the potential to breed disrespect for the law.

111 F.3d at 1546, Tjoflat, J., *dissenting*; App. at 36a.

Judge Tjoflat then went on to catalogue how the majority's opinion:

- provides a model for other businesses who "might choose to follow the City's footsteps . . . by having a policy against sexual harassment but concealing from its employees the identity of the person to whom claims are to be made [since] . . . such concealment would have the potential for reducing claims of sexual harassment." *Id;* App. at 37a.
- discourages employees from making complaints by not clearly delineating to whom they should be made, lest they complain to the wrong person, suffer the embarrassment and disruption attendant to such a complaint, but have it be for naught. *Id.* at 1547; App. at 38a.

- breeds disrespect for the law by making Title VII enforcement into "a game to be played with cards dealt from a deck composed of law of agency principles," the object of which game "is to escape Title VII liability without affording employees the protection that Title VII purports to provide." *Id.*

The dissent's concerns are not chimerical. Iimplicit in *en banc* majority's treatment of the policy-dissemination issue is a dilution of the requirement that employers who seek to avoid liability for co-worker and supervisor sexual harassment provide what the Court of Appeals for the Second Circuit has referred to as "a reasonable avenue for complaint..." *Kotcher v. Rosa and Sullivan Appliance Center, Inc.*, 957 F.2d 59, 63 (2nd Cir. 1992).

Finally, there is the issue of the notice to the city through the lifeguard captain,[13] Gordon, to whom "several lifeguards complained," which the majority discounts because "Gordon did not receive that information as the City's agent; he received it as a friend held in high repute by his colleagues." 111 F.3d at 1538, n.9. "When plaintiffs complained to him, he indicated that the City did not care." 111 F.3d at 1547, Anderson, J., *dissenting*. While both the trial court and the court of appeals dismissed Gordon as not being "higher management," 111 F.3d at 1538; 864 F. Supp. at 1556, his position as a supervisor to whom several women lifeguards were complaining about sexual harassment, and who expressed an opinion of non-

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[13] Although the *en banc* opinion refers to Gordon as a lieutenant, 111 F.3d at 1538 and n. 9, he actually was a captain, as the trial court found. 864 F. Supp. at 1559; App. at 82a.

concern, further raises at least the issue of constructive knowledge.

In summary, the *en banc* majority has raised important questions about federal law and has answered those questions adversely to sexual-harassment plaintiffs without reliance on any authority. Those issues, which go to the very heart of enforcement of federal laws proscribing work-place sexual harassment, should be answered by this Court. Thus, the Court should issue the writ.

CONCLUSION

Based on the authorities cited and the argument presented, the Court should grant the petition for a writ of certiorari.

Respectfully submitted,

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Appendix

APPENDIX A — OPINION OF THE UNITED STATES COURT OF APPEALS FOR THE ELEVENTH CIRCUIT DATED APRIL 15, 1997

United States Court of Appeals,

Eleventh Circuit.

No. 94-4878.

Beth Ann FARAGHER, Nancy Ewanchew, Plaintiffs-Appellants-Cross-Appellees,

v.

CITY OF BOCA RATON, a political subdivision of the State of Florida, Defendant-Appellee-Cross-Appellant,

Bill Terry, David Silverman, Defendants-Appellees.

April 15, 1997.

As Amended April 28, 1997*.

Appeal from the United States District Court for the Southern District of Florida (No. 92-8010-Civ-Highsmith), Shelby Highsmith, District Judge.

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* Judge Barkett's dissent, in which Chief Judge Hatchett and Senior Judge Kravitch join, is amended. All other opinions remain the same.

Before HATCHETT, Chief Judge, TJOFLAT, ANDERSON, EDMONDSON, COX, BIRCH, DUBINA, BLACK, CARNES and BARKETT, Circuit Judges, and DYER** and KRAVITCH***, Senior Circuit Judges.

COX, Circuit Judge:

I. Facts[1]

Beth Ann Faragher worked as an ocean lifeguard for the City of Boca Raton, Florida (City), in the Parks and Recreation Department's Marine Safety Section. The City employed Faragher intermittently from September 1985 until June 1990. During these five years, Bill Terry and David Silverman acted as supervisors of the ocean lifeguards, Terry as Chief of the Marine Safety Section and Silverman as a Marine Safety lieutenant and then captain. Terry had the authority to supervise all aspects of the lifeguards' work assignments; to give oral reprimands and place reports of disciplinary actions in personnel files; and to interview and select new lifeguards, subject to approval by higher management. Silverman supervised the lifeguards' daily duties, including designating work assignments and supervising physical fitness routines.

** Senior U.S. Circuit Judge Dyer elected to participate in this decision pursuant to 28 U.S.C. § 46(c).

*** Senior U.S. Circuit Judge Kravitch was in regular active service when this matter was originally submitted but has taken senior status effective January 1, 1997. She elected to participate in this decision pursuant to 28 U.S.C. § 46 (1996).

1 The facts are essentially drawn from the district court's Findings of Fact.

The Marine Safety Section was organized according to a clear chain of command. Lifeguards reported to Marine Safety lieutenants, and above them to captains; the captains reported directly to the Chief of the Marine Safety Section, who was directly supervised by the Recreation Superintendent; the Recreation Superintendent reported to the Director of Parks and Recreation, who reported to the City Manager. Lifeguards had little contact with City officials. Marine Safety Headquarters was at the beach–in a remote location, far away from City Hall.

Marine Safety Chief Terry subjected Faragher and another lifeguard, Nancy Ewanchew, to uninvited and offensive touching, and lieutenant Silverman made offensive comments and gestures to both Faragher and Ewanchew. In particular, Faragher testified that over the course of her five years of employment Terry touched her shoulders or waist on a number of occasions, patted her thigh once in April 1990, and slapped her on the rear end. Ewanchew testified about two specific incidents where Terry touched her in a sexually offensive manner. However, neither Faragher nor Ewanchew complained to Parks and Recreation Department management about Terry's and Silverman's conduct while they were employed with the City or when they resigned. They both did speak about Terry's and Silverman's conduct with one of their supervisors, Marine Safety lieutenant and Training Captain Robert Gordon. In fact, most of the female lifeguards complained to Gordon about Silverman's language and conduct. The lifeguards did not speak with Gordon on a subordinate to superior basis; they spoke with him as a friend whom they held in high repute. Gordon did not report the complaints to his supervisor, Terry, or to any other City official.

Ewanchew resigned from her position with the City in April of 1989, saying that she was leaving because she had found a better job. Faragher resigned in June of 1990 to attend law school. In April of 1990, Ewanchew wrote a letter to the City's Director of Personnel complaining that she and other female lifeguards had been sexually harassed by Terry and Silverman while she was employed by the City. The City did not know about Terry's and Silverman's conduct until receiving Ewanchew's letter. The City then investigated Ewanchew's complaint and determined that Terry and Silverman had engaged in some inappropriate conduct. The City reprimanded and disciplined them both.

II. Procedural Background

In 1992, Faragher sued the City, Terry, and Silverman. Faragher sued the City for sexual harassment under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e *et seq.* (Count I). Faragher sued Terry and Silverman for sexual harassment under 42 U.S.C. § 1983 (Counts II and III). Faragher also asserted pendent state law claims, suing Terry for battery (Counts IV and V) and the City for negligent retention and supervision of Terry (Counts VI and VII). The district court held a non-jury trial on all claims.

The district court entered judgment for Faragher on her Title VII claim against the City, awarding her $1 in nominal damages.[2] The court held that Terry's and

[2] The district court awarded Faragher $10,000 in compensatory damages on her § 1983 claim against Terry and Silverman, jointly and severally, and $500 in punitive damages on her battery claim against Terry. Additionally, the district court entered judgment for Ewanchew on her battery claim against Terry and awarded her $ 35,000 in compensatory damages and $2,000 in punitive damages.

Silverman's offensive conduct was sufficiently severe and pervasive to alter the conditions of Faragher's employment by creating a hostile work environment. The court held that the City was directly liable for Terry's and Silverman's conduct under agency principles based on Terry's and Silverman's supervisory authority and the overall workplace structure. In addition, the court held that the City was indirectly liable for Terry's and Silverman's offensive conduct because the conduct was severe and pervasive and supported "an inference of knowledge, or constructive knowledge, on the part of the City regarding Terry's and Silverman's sexual harassment." (R.6-166 at 23.)

Faragher appealed and the City cross appealed. A panel of this court reversed the district court's judgment for Faragher on her Title VII sexual harassment claim against the City, but affirmed the district court's judgment in all other respects. *Faragher v. City of Boca Raton*, 76 F.3d 1155 (11th Cir.1996). That panel opinion was vacated and rehearing en banc was granted. *Faragher v. City of Boca Raton*, 83 F.3d 1346 (11th Cir.1996).

III. Issues on Appeal

We address two issues in this opinion:[3] First, whether the City may be liable under Title VII for Terry's and Silverman's hostile environment sexual harassment of Faragher, regardless of its actual or constructive knowledge of that harassment; and second, whether the City knew or should have known of Terry's and Silverman's hostile environment harassment of Faragher.

[3] The parties present additional issues that do not merit further discussion. We affirm as to those issues. *See* 11th Cir. R. 36 – 1. IV.

IV. Standards of Review

We review the district court's finding of fact under the clearly erroneous standard of review. *Pullman-Standard v. Swint*, 456 U.S. 273, 287-88, 102 S.Ct. 1781, 1789, 72 L.Ed.2d 66 (1982). We review the district court's conclusions of law and its application of law to facts *de novo*. *Massaro v. Mainlands Section 1 & 2 Civic Ass'n, Inc.*, 3 F.3d 1472, 1475 (11th Cir.1993), *cert. denied*, 513 U.S. 808, 115 S.Ct. 56, 130 L.Ed.2d 15 (1994).

V. Contentions of the Parties

Faragher contends that Terry's and Silverman's positions as top lifeguard commanders make them prototypical agents of the City. Faragher argues that this status, combined with Terry's and Silverman's conduct, makes the City liable for hostile environment sexual harassment. In addition, Faragher argues that the harassment was so pervasive that the City should be charged with constructive knowledge of Terry's and Silverman's conduct.

The City argues that it cannot be held liable under agency principles for Terry's and Silverman's conduct because there is no evidence which supports a finding either that Terry and Silverman were acting within the scope of their authority in harassing Faragher, or that they were aided in accomplishing the harassment by the existence of their agency relationships with the City. The City further contends that the evidence is insufficient to support the trial court's finding that the City had constructive notice of Terry's and Silverman's conduct.

VI. Discussion

A. *The City is not indirectly liable for Terry's and Silverman's conduct.*

This case requires us to accommodate the Supreme Court's mandate in *Meritor Savings Bank v. Vinson* that federal courts use traditional agency principles when deciding hostile environment sexual harassment cases, but simultaneously "place some limits on the acts of employees for which employers under Title VII are to be held responsible." 477 U.S. 57, 72, 106 S.Ct. 2399, 2408, 91 L.Ed.2d 49 (1986).

Because the Eleventh and all other circuits employ agency principles in the realm of hostile environment sexual harassment, this opinion utilizes the language of traditional agency case law. Under this approach, direct liability and indirect liability are distinct concepts and form the only possible bases for an employer's liability. An employer is directly liable for hostile environment sexual harassment if it knew, or upon reasonably diligent inquiry should have known, of the harassment and failed to take immediate and appropriate corrective action. *See Steele v. Offshore Shipbuilding, Inc.*, 867 F.2d 1311, 1316 (11th Cir.1989); *Henson v. City of Dundee*, 682 F.2d 897, 905 (11th Cir.1982).[4] Under this theory of direct liability, the City can be held liable for its own negligence or recklessness, but not for the conduct of its supervisors or employees.

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[4] These cases refer to this type of liability as "indirect" liability. However, as courts long have done outside the realm of Title VII sexual harassment analyses, we are now marrying the common law agency terms to their proper, traditional common law principles. This alteration can promote ease of reference to the underlying common law agency principles.

In contrast, an employer is indirectly, or vicariously, liable for the wrongful conduct of its agent, whether or not the employer knew or should have known about the agent's wrongful act. Generally, an employer may be indirectly liable for hostile environment sexual harassment by a superior: (1) if the harassment occurs within the scope of the superior's employment; (2) if the employer assigns performance of a non-delegable duty to a supervisor and an employee is injured because of the supervisor's failure to carry out that duty; or (3) if there is an agency relationship which aids the supervisor's ability or opportunity to harass his subordinate. *See* Restatement (Second) of Agency § 219(1), (2)(c), (2)(d).

Subsequent to *Meritor,* the circuits differ on the appropriate test to apply in a hostile work environment case involving sexual harassment of an employee by the employer's supervisor. *See, e.g., Kauffman v. Allied Signal,* 970 F.2d 178, 184 (6th Cir.1992)(holding that the plaintiff must establish that a supervisor's harassment was within the scope of his employment and that the employer failed to respond adequately and effectively when it learned of the harassment); *Paroline v. Unisys Corp.,* 879 F.2d 100, 104, 106-07 (4th Cir.1989), vacated in part, 900 F.2d 27 (4th Cir.1990)(holding that the proper inquiry is whether the individual defendant served in a supervisory position in which he exercised "significant control over the plaintiff's hiring, firing or conditions of employment;" and, if not, whether employer had actual or constructive knowledge of the existence of a hostile work environment and took no prompt and adequate remedial steps); *Hicks v. Gates Rubber Co.,* 833 F.2d 1406, 1418 (10th Cir.1987)(holding that employer liability could arise under the principles of Restatement § 219(2) if: (1) the employer was negligent or reckless; or (2) the employee relied on the supervisor's

apparent authority; or (3) the supervisor was aided in his harassment by the existence of the agency relationship); *Andrews v. City of Philadelphia,* 895 F.2d 1469, 1486 (3rd Cir.1990)(holding that the plaintiff must prove that management level employees had actual or constructive knowledge about the existence of a sexually hostile environment and failed to take prompt and adequate remedial action); and *EEOC v. Hacienda Hotel,* 881 F.2d 1504, 1515-16 (9th Cir.1989)(holding that "employers are liable for failing to remedy or prevent a hostile or offensive work environment of which management-level employees knew, or in the exercise of reasonable care should have known").

This Circuit has concluded that in a pure hostile environment case, a supervisor's harassing conduct is typically outside the scope of his employment. *See Steele,* 867 F.2d at 1311 (11th Cir.1989); *accord Andrade v. Mayfair Management, Inc.,* 88 F.3d 258, 261 (4th Cir.1996)(holding that illegal sexual harassment is an illegitimate corporate activity, beyond the scope of the supervisor's employment). We noted that:

> Strict liability is illogical in a pure hostile environment setting. In a hostile environment case, no *quid pro quo* exists. The supervisor does not act as the company; the supervisor acts outside "the scope of actual or apparent authority to hire, fire, discipline, or promote."

Steele, 867 F.2d at 1316 (quoting *Henson,* 682 F.2d at 910). Thus, as *Meritor* teaches, employers are not automatically liable for hostile environment sexual harassment by their supervisors or employees.

Instead, this circuit has articulated two agency principles under which an employer may be held indirectly,[5] or vicariously, liable for hostile environment sexual harassment: (1) when a harasser is acting within the scope of his employment in perpetrating the harassment, *see Sparks v. Pilot Freight Carriers, Inc.*, 830 F.2d 1554, 1558 (11th Cir.1987)(citing Restatement (Second) of Agency § 219(1));[6] and (2) when a harasser is acting outside the scope of his employment, but is aided in accomplishing the harassment by the existence of the agency relationship. *Sparks*, 830 F.2d at 1559-60 (citing Restatement (Second) of Agency § 219(2)(d)). Faragher's claim against the City fails on either theory.

First, neither Terry nor Silverman was acting within the scope of their employment when they perpetrated the harassment. Under well-established common law agency rules, an agent is not acting within the scope of his employment when he is "going on a frolic of his own." *Joel v. Morrison*, 6 C. & P. 501, 172 Eng.Rep. 1338 (1834)(first recorded use of this phrase); *see also Spencer v. Assurance Co. of America*, 39 F.3d 1146, 1149 (11th Cir.1994)(interpreting Florida law). In this scenario, the agent steps outside of his employment to do some act for himself which is not connected to his employer's business. *See* William L. Prosser, § 70 Law of Torts at 461 (4th ed.1982). If the agent has no intention to perform any service for his employer, but instead seeks only to further some personal end, then the act is not within the scope of his employment. *See*, e.g., *Bennett v.*

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[5] The cases that developed these theories of liability referred to them as avenues for "direct" employer liability. For the reasons stated in footnote 2, we use the label "indirect" liability.

[6] This scenario admittedly will be rare after *Steele*.

United States, 102 F.3d 486, 489 (11th Cir.1996)(holding that victim of accidental shooting in army barracks could not hold the United States liable under Georgia respondeat superior principles because employee had undertaken an act purely personal in nature and thus outside the scope of his employment); *Spencer*, 39 F.3d at 1150 (holding that in order for an employee's conduct to be within the scope of his employment Florida law requires that the conduct (1) must have been the kind for which the employee was employed to perform; (2) must have occurred within the time and space limits of his employment; and (3) must have been activated at least in part by a purpose to serve the employment); Restatement (Second) of Agency § 235; *see also* Restatement (Second) of Agency § 236.[7]

In contrast, if it becomes apparent that the act was the agent's way of accomplishing some authorized purpose, then the master cannot avoid liability, even if he has given specific, detailed and emphatic instructions to the contrary. *See* Restatement (Second) of Agency § 230; Prosser, *supra*, at 461.

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[7] The commentary to §§ 235 and 236 makes it clear that scope-of-employment determinations must turn on whether the employee's act was intended to benefit the employer. This "intent" can be discerned from circumstantial evidence which indicates that the employee's act, whether "part" of, or "incidental" to, the employment was in some way authorized by the employer. *See* Comment a, § 235, Comment a, § 236. Thus, "[i]f ... the servant does the very act directed, or does the kind of act which he is authorized to perform within working hours and at an authorized place, there is an inference that he is acting within the scope of employment." Comment a, § 235. *See also Bennett*, 102 F.3d at 494 (noting that Georgia scope-of-employment doctrine focuses on whether the employee has acted to benefit his employer's purpose.)

The contours of this same analysis have guided courts adjudicating agency issues in intentional tort cases. Generally, an employer is held liable for any intentional tort committed by an agent where the purpose of the tort is wholly or in part to further the employer's business. Restatement (Second) of Agency § 245; Prosser, *supra,* at 464. Once again, however, if the agent acts from purely personal motives, he is usually considered to have departed from his employment and his employer is not liable. *Id.* at 465.

The harassment here consisted of offensive comments, gestures and touching. However, the nature of Terry's and Silverman's acts and comments towards Faragher does not support a finding that they were acting within the scope of their employment in subjecting Faragher to offensive language, gestures, and touching. Indeed, there is no evidence that Terry and Silverman harassed Faragher in order to perform any service for the City, or that they were either explicitly or implicitly authorized by the City to engage in such harassment. This case provides the archetypical example of employees stepping outside of the scope of their employment and seeking to further personal ends. Consequently, under this theory of vicarious liability, the City cannot be liable for Terry's and Silverman's harassing conduct.

Second, neither Terry nor Silverman were aided in accomplishing the harassment by the existence of their agency relationship with the City. *See Sparks,* 830 F.2d at 1559-60 (citing Restatement (Second) of Agency § 219(2)(d)). In one sense, a supervisor is always aided in accomplishing hostile environment sexual harassment by the existence of an agency relationship with his employer because his responsibilities include close proximity to and regular contact with the victim. *Gary v. Long,* 59 F.3d

1391, 1397 (D.C.Cir.), *cert. denied* ----- U.S. -----, 116 S.Ct. 569, 133 L.Ed.2d 493 (1995). However, the common law rule does not use "aided" in such a broad sense. Rather, the employer is liable only if the harassment is accomplished by an instrumentality of the agency or through conduct associated with the agency status. *Id.*[8] In *Sparks,* for example, the harasser used the authority delegated to him by the company to assist in the harassment: He repeatedly reminded the victim that he could fire her if she refused his advances. *Sparks,* 830 F.2d at 1560; *see also Steele,* 867 F.2d at 1317 (limiting holding of *Sparks* to situations involving both *quid pro quo* and hostile environment harassment).

No person threatened to fire or demote Faragher for refusing to accommodate Terry's and Silverman's harassing overtures. Moreover, the harassment cannot reasonably be viewed as conduct associated with Terry's and Silverman's status as agents of the City. *See supra* note 8. And, there is no evidence that either Terry or Silverman made any employment decisions based upon Faragher's response to their sexual overtures. *See*

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[8] *Gary* cites, as an example of this type of conduct, Restatement (Second) of Agency § 219, comment e: "Thus a telegraph company may be held liable for a tort committed by a telegraph operator who sends a false telegraph message, as may the undisclosed principal of a store whose manager cheats a customer." *Gary,* 59 F.3d at 1397. The point is that in such cases, [l]iability is based upon the fact that the agent's position facilitates the consummation of the [tort], in that from the point of view of the third person the transaction seems regular on its face and the agent appears to be acting in the ordinary course of the business confided to him. *See* Restatement § 219, comment e (citing § 261 in discussion of § 219(2)(d)).

Karibian v. Columbia University, 14 F.3d 773, 780 (2nd Cir.1994)(holding employer liable for hostile environment sexual harassment where supervisor capitalized upon his authority over plaintiff's employment to force plaintiff to endure prolonged, violent and demeaning sexual relationship).

Because Terry and Silverman were not acting within the line and scope of their employment in perpetrating the harassment against Faragher, and because Terry and Silverman were not aided in accomplishing the harassment by the existence of any agency relationship with the City, the district court erred in holding the City of Boca Raton vicariously liable for Terry's and Silverman's harassment of Faragher.

B. *The City is not directly liable for Terry's and Silverman's harassing conduct.*

The district court found that the City had no actual knowledge of the sexual harassment but had constructive knowledge because of the harassment's pervasiveness. The question of constructive knowledge is an issue of fact reviewed for clear error. *Reich v. Department of Conservation and Natural Resources, State of Ala.,* 28 F.3d 1076, 1082 (11th Cir.1994).

The City contends that the district court's finding that the City had constructive notice of the harassment is clearly erroneous and, therefore, that the City may not be held directly liable for the harassment. Faragher responds that the district court's finding that the sexual harassment was severe and pervasive enough to infer the City's knowledge is not clearly erroneous.

An employer is directly liable for hostile work environment sexual harassment if the employer knew or should have known of the harassment and failed to take prompt remedial action. *Steele,* 867 F.2d at 1316; *Henson,* 682 F.2d at 905. A plaintiff can prove an employer's knowledge of harassment by showing she complained to higher management. *Huddleston v. Roger Dean Chevrolet, Inc.,* 845 F.2d 900, 904 (11th Cir.1988). The district court found that Faragher did not complain to higher management at the City. While several lifeguards complained to lieutenant Gordon, the district court found that he did not rank as higher management in the City and, therefore, that notice to him should not be imputed to the City.

A plaintiff also can prove an employer's knowledge by showing that the harassment was pervasive enough to charge the employer with constructive knowledge. *Huddleston,* 845 F.2d at 904; *Henson,* 682 F.2d at 905. The district court believed that its finding that the conduct was sufficiently severe and pervasive to alter the conditions of Faragher's employment "supports an inference of knowledge, or constructive knowledge, on the part of the City regarding Terry's and Silverman's sexual harassment, making the City [directly] liable for such conduct." (R.6-166 at 23-24.) According to the court, the pervasiveness analysis applicable to finding that the work environment was abusive is the same as the analysis

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[9] In its discussion of the City's indirect liability for Terry's and Silverman's conduct the court held that Gordon's knowledge of Terry's and Silverman's conduct provides a basis for holding the City liable. This was error. Gordon did not receive that information as the City's agent; he received it as a friend held in high repute by his colleagues.

required to show the employer's knowledge.

We agree with the district court that the analyses are the same to the extent that a court must evaluate the totality of the circumstances both in determining whether the work environment was abusive and in determining whether the conduct was pervasive enough to put the employer on notice. But we do not agree with the district court's apparent belief that simply because conduct is pervasive enough to create an abusive work environment the employer should be charged with knowledge of the conduct. The question of notice to the employer is distinct from the question of the environment's abusiveness. Thus, the district court erred to the extent that it conflated the two inquiries. [10]

There may be cases in which it is difficult to draw the line where conduct becomes so pervasive that the employer should have known about it. But this is not such a case. The district court expressly found that the City had no knowledge of Terry's and Silverman's conduct. The district court did not find, nor has Faragher pointed to, any factual basis for concluding that the harassment was so pervasive that the City should have known of their conduct. The evidence suggests that just the opposite is true. The lifeguards were stationed at a remote location and had little contact with City officials. The harassment itself occurred intermittently over a long period of time. Faragher worked for the City mostly on a

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[10] It does not follow in this case that because there was an abusive environment the City necessarily had constructive knowledge of Terry's and Silverman's harassment. However, there may be other cases in which the same level of pervasiveness can support a finding both of hostile environment and constructive notice.

part-time and summer basis, and the district court's holding was premised upon a few, discrete instances of harassment. Another lifeguard, Kelly Evans, was a friend of Faragher's, yet the two never discussed sexual harassment and there is no evidence that Ms. Evans was otherwise aware of Terry's and Silverman's harassing behavior towards Faragher. And, as part of her duties as Recreation Superintendent, Sandy Dioli-Kumm occasionally counseled some of the lifeguards. Ewanchew came to see Dioli-Kumm to discuss work-related issues on several different occasions but never mentioned anything about sexual harassment or offensive words or touching by Terry or Silverman; nor is there any evidence that Dioli-Kumm was otherwise aware of such harassment.

Finally, the district court found that the confined space at the lifeguard headquarters building, along with the disproportionate ratio of female to male lifeguards, were in and of themselves conducive to a sort of camaraderie that might be considered "somewhat boisterous." Despite this, however, Ewanchew stated that the atmosphere in the locker room was generally respectful among members of a particular shift.

For the above reasons, the district court clearly erred in finding that the City's knowledge may be inferred from the fact that the conduct was pervasive enough to create an abusive work environment. [11] Thus, because

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[11] There is some evidence that the City did not effectively disseminate among Marine Safety employees its sexual harassment policy. The district court did not find that the City would have known about the harassment if it had effectively disseminated this policy; and indeed, the record indicates that failure to disseminate this policy was not the reason why the City did not know about the harassment.

there was no basis for imputing knowledge of the harassment to the City, and the district court having found that the City had no actual knowledge of the harassment, we hold that the City is not directly liable for Terry's and Silverman's harassment of Faragher.

VII. Conclusion

We reverse the district court's judgment for Faragher on her Title VII sexual harassment claim against the City. In all other respects we affirm the district court's judgment.

AFFIRMED in part; REVERSED in part.

BARKETT, Circuit Judge, dissenting in part and concurring in part, in which HATCHETT, Chief Judge, and KRAVITCH, Senior Circuit Judge, joins:

The question posed in this case explores the circumstances under which an employer can be liable for a supervisor-created hostile environment of sexual harassment. I believe the majority errs in concluding that the city is not liable under the circumstances presented here and misapplies the law in doing so. First, I believe that the majority fails to give appropriate consideration to the responsibility of an employer for the acts of its agents under traditional agency principles, and essentially limits liability to only employers who "knew or should have known" of the hostile environment. Second, even though the majority says that an employer's liability can be based on only constructive knowledge, its analysis effectively requires actual knowledge "of high city officials"–a test at odds with traditional principles of "imputed" corporate

knowledge.[1]

In *Meritor Savings Bank v. Vinson*, 477 U.S. 57, 106 S.Ct. 2399, 91 L.Ed.2d 49 (1986), although the Supreme Court declined to extend strict liability to hostile environment sexual harassment, it likewise rejected rules which would insulate employers from liability absent actual or constructive notice. Instead, it simply directed courts to look to traditional agency principals to assess an employer's liability for hostile environment sexual harassment. *Id.* at 72-73, 106 S.Ct. at 2408.[2]

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[1] Additionally, the majority errs in engaging in *de novo* review of the district court's factual findings relating to constructive knowledge of reviewing for clear error.

[2] Common law principles of agency are embodied in § 219 of the Restatement (Second) of Agency (1958)[hereinafter "Restatement"]. Section 219 establishes five different theories for assigning liability to employers for the actions of their employees:

> (1) A master is subject to liability for the torts of his servants committed while acting in the scope of their employment.
>
> (2) A master is not subject to liability for the torts of his servants acting outside the scope of their employment, unless:
>
> > (a) the master intended the conduct or the consequences, or
> >
> > (b) the master was negligent or reckless, or
> >
> > (c) the conduct violated a non-delegable duty of the master, or

As does the majority, I will discuss these agency concepts in turn.

"Direct Liability"[3]

The majority acknowledges employer liability for supervisor-created hostile environment sexual harassment if the employer knew or should have known of the harassment and failed to take prompt remedial action. *Vance v. Southern Bell Tel. & Tel. Co.*, 863 F.2d 1503, 1512 (11th Cir.1989). Under our case law, an inference of constructive knowledge on the part of the employer can be supported by a finding of pervasive harassment. *Huddleston v. Roger Dean Chevrolet, Inc.*, 845 F.2d 900, 904 (11th Cir.1988) (explaining that "[p]laintiff can show that the employer had knowledge by "demonstrating that the harassment was so pervasive that an inference of constructive knowledge arises' "); *Vance*, 863 F.2d at 1512 (stating that a plaintiff "can prove that

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(d) the servant purported to act or speak on behalf of the principal and there was reliance upon apparent authority, or he was aided in accomplishing the tort by the existence of the agency relation.

3. I am using "direct" liability in the same manner as the majority. Under the Restatement, this theory arises under § 219(2)(b), which provides: "(2)A master is not subject to liability for the torts of its servants acting outside the scope of their employment, unless: (b) the master was negligent or reckless." Employer negligence in this context is defined as "failing to remedy ot prevent a hostile or offensive work environment of which management-level employees knew, or in the exercise of reasonable care should have known." *Hirschfield v. New Mexico Corrections Dep't*, 916 F.2d 572, 577 (10th Cir. 1990); *Kauffman v. Allied Signal, Inc.* 970 F.2d 178, 185 (6th Cir.), *cert. denied*, 506 U.S. 1041, 113 S.Ct 831, 121 L.Ed.2d 701 (1992).

the employer knew of the harassment by showing . . . that the harassment was pervasive enough to charge the employer with constructive knowledge").

After a non-jury trial, the district court in this case found that Terry's and Silverman's conduct was "sufficiently severe or pervasive" to constitute hostile environment sexual harassment. The court then ruled that "[t]his finding of pervasiveness supports an inference of knowledge, or constructive knowledge, on the part of the City regarding Terry's and Silverman's sexual harassment...." The determination of constructive notice is based on factual findings which this court will not overturn unless they are clearly erroneous. *See Reich v. Dep't of Conservation and Natural Resources*, 28 F.3d 1076, (11th Cir.1994) (citing *Lewis v. Federal Prison Indus., Inc.*, 786 F.2d 1537, 1543-45 (11th Cir.1986) (reversing as clearly erroneous a district court's finding with respect to whether management knew or should have known that remedial action taken to eliminate age discrimination was ineffective)); *Vance*, 863 F.2d at 1512 (referring to the issue of constructive knowledge of sexual harassment as a "factual determination"). Nonetheless, the majority essentially engages in *de novo* review, substituting the trier of fact's assessment of the record with its own. *See* Majority Op. at 1538.

The majority also purports to find legal error: "[S]imply because conduct is pervasive enough to create an abusive work environment an employer should [not] be charged with knowledge of the conduct. The question of notice to the employer is distinct from the question of the environment's abusiveness. Thus the district court erred to the extent that it conflated the two inquiries." Majority Op. at 1538. However, there is no support in either logic or the law for such a proposition. The

majority can cite to no case which holds that the same level of pervasiveness cannot support the same finding of a hostile environment and constructive notice. In fact, *Vance* states, "Just as the determination of whether conduct is sufficiently 'severe and pervasive' to constitute actionable harassment requires evaluation of the totality of the circumstances, the fact finder [in determining constructive knowledge] must examine the evidence in the same manner. Again, the egregiousness, as well as the number of the incidents, is plainly relevant." *Id.* at 1513. Moreover, the majority seems to collapse the two distinct inquiries of actual knowledge and constructive knowledge into one, effectively requiring actual knowledge before imposing liability. For example, in rejecting the district court's finding of constructive notice the majority notes that "the City had no knowledge" of Terry's and Silverman's conduct; that there was no "factual basis for concluding that the City should have known of their conduct"; that the lifeguards "were stationed at a remote location and had little contact with City officials"; that Faragher never told her friend who also was a lifeguard; and that the Recreation superintendent was never told about the sexual harassment. Majority Op. at 1538. These factors inform an actual knowledge inquiry, not a constructive knowledge inquiry.

For an employer to be charged with knowledge, it is clearly not necessary for the head of the company, its president, or the chairman of the board to have known of the harassment. Indeed, generally the ultimate head or governing board does not have actual knowledge of the action. The very point of ascribing knowledge on a constructive basis is to recognize that liability can be imputed even when the employer has not been "told," i.e., even when there is no actual knowledge. The relevant inquiry for constructive knowledge is what the employer

should have known in the exercise of reasonable care. *Hirschfeld v. New Mexico Corrections Dep't.*, 916 F.2d 572, 577 (10th Cir.1990). Thus, an employer cannot insulate itself from liability by abandoning its employees in a remote location to be supervised by someone who makes their work lives miserable by offensive touching and an atmosphere of sexually offensive comments, suggestions and innuendo.

Terry was the Chief and supervisor of the lifeguard station at which Faragher worked. He clearly had the notice necessary to impute knowledge, and therefore liability, to the City. Under the circumstances presented here, the district court, after hearing and evaluating the evidence, correctly applied the law to the facts of this case and did not commit clear error in finding that the pervasiveness of the harassment supported an inference of constructive notice on the part of the City.

"Indirect Liability "[4]

I also think the majority errs in effectively confining liability to instances where an employer has actual or constructive knowledge. The very purpose of agency is to establish an employer's liability specifically for acts of which it has no knowledge. As Justice Joseph Story explains, a principal

> is held liable to third persons in a civil suit for the frauds, deceits, concealments, misrepresentations,

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4. I am using "indirect"liability in the same manner as the majority, that is, according to the principles of agency found in §§ 219-37 of the Restatement.

> torts, negligences, and other malfeasances, or misfeasances, and omissions of duty, of his agent, in the course of his employment, although the principal did not authorize, or justify, or participate in, or, indeed, know of such misconduct, or even if he forbade the acts, or disapproved of them.

Joseph Story, Commentaries on the Law of Agency § 452, at 536-37 (5th ed. 1857). This rule of holding a principal liable for the acts of its agent is based on "the consideration that it is the principal who makes it possible for the agent to inflict the injury." 3 Am.Jur.2d *Agency* § 270 (1986). The record here establishes that Terry and Silverman were agents of the City acting within the scope of their employment[5] and were aided in accomplishing the harassment by the existence of an agency relationship.[6]

The majority erroneously assumes that because employers rarely, if ever, expressly authorize supervisors to act in a way that would create a sexually hostile environment, harassment by a supervisor would never fall "within the scope of his employment." The majority erroneously states that "[t]his Circuit has concluded that in a pure hostile environment case, a supervisor's harass-

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5. § 219(1) provides, " A master is subject to liability for the torts of his servants committed while acting in the scope of their employment."

6. § 219(2)(d) provides, "A master is not subject to liability for the torts of his servants acting outside the scope of their employment, unless ... the servant purported to act or to speak on behalf of the principal and there was reliance upon apparent authority, or he was aided in accomplishing the tort by the existence of the agency relation."

ing conduct is typically outside the scope of his employment." Majority Op. at 1535. However, the language from *Steele v. Offshore Shipbuilding, Inc.*, 867 F.2d 1311, 1316 (11th Cir.1989) that the majority cites in support of this proposition merely reiterates *Meritor*'s rule against applying strict liability in hostile environment harassment cases. To the extent that the majority relies on cases from other circuits for the holding that harassment constitutes behavior outside the scope of employment,[7] such cases serve as poor guides since they misconstrue the agency law to which *Meritor* directs us. The Restatement clearly states that "an act, although forbidden, or done in a forbidden manner, may be within the scope of employment." Restatement § 230. The proper inquiry in determining if the agent's actions are "within the scope of employment" is not whether the objectionable conduct was authorized, but whether the conduct is of "the same general nature as that authorized, or incidental to the conduct authorized." Restatement § 229. In making that determination, courts should consider, among other things, when the action took place, where it took place, whether it was foreseeable, the purpose of the action, whether it served the principal, and the extent of the departure from normal methods or results. *Id.; see also, Yates v. Avco Corp.*, 819 F.2d 630 (6th Cir.1987) (finding that supervisor acted "within scope of employment" in harassing subordinate where harassment took place at the office, during working hours and was carried out by someone with the authority to hire, fire, promote and discipline the plaintiffs); *Kauffman v.*

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7. *See e.g. Andrade v. Mayfair Manag., Inc.*, 88 F.3d 258, 261 (4th Cir.1996) (stating that "illegal sexual harassment is an illegitimate corporate activity, beyond the scope of supervisors' employment").

Allied Signal, Inc., 970 F.2d 178 (6th Cir.) (explaining that a relevant factor in determining if supervisor was acting "within the scope of employment" in harassing subordinate is whether the supervisor had "significant input" into personnel decisions), *cert. denied*, 506 U.S. 1041, 113 S.Ct. 831, 121 L.Ed.2d 701 (1992).

Indeed, I believe that hostile environment sexual harassment is analogous to the Restatement's well-known paradigm, which explains that "a chauffeur, driving on an errand for his master, who knowingly drives on the left-hand side of the street or exceeds the speed limit, is still acting within the scope of employment." Restatement § 231 cmt. a. The act of speeding has not been authorized by the employer, but the journey has clearly been undertaken within the scope of the chauffeur's employment. Likewise, a pervasively hostile work environment of sexual harassment is never (one would hope) authorized, but the supervisor is clearly charged with maintaining a productive, safe work environment. The supervisor directs and controls the conduct of the employees, and the manner of doing so may inure to the employer's benefit or detriment, including subjecting the employer to Title VII liability. In hostile environment sexual harassment cases the supervisor, though not authorized to create a sexually hostile environment, uses his authority "to call [the victim] into his presence, to retain her in his presence over her objections, to use his responsibility to act as the voice of the employer to place her in a compromising position, and to take liberties with her personal privacy beyond the reach of a co-equal acquaintance, or a stranger." *See* David Benjamin Oppenheimer, *Exacerbating the Exasperating: Title VII Liability of Employers for Sexual Harassment Committed By Their Supervisors*, 81 Cornell L.Rev. 66, 88 (1995); *see also, Huddleston*, 845 F.2d at 904

(employer liable where supervisor required plaintiff to attend staff meetings where she was harassed, and he physically touched her while berating her for her job performance); *Tomka v. The Seiler Corp.*, 66 F.3d 1295 (2d Cir.1995) (employer liable where supervisor required plaintiff to attend business dinner and encouraged alcohol consumption which led to her rape by supervisor and other employees).

Moreover, "[a]n act may be within the scope of employment although consciously criminal or tortious." Restatement § 231; *see also, Lyon v. Carey*, 533 F.2d 649 (D.C.Cir.1976) (employer liable where delivery person raped a woman to whom he was delivering furniture); *Ira S. Bushey & Sons. Inc.v. United States*, 398 F.2d 167 (2d Cir.1968) (government liable where drunken sailor's unauthorized acts caused ship to sink); *Carr v. Wm. C. Crowell Co.*, 28 Cal.2d 652, 171 P.2d 5 (1946) (employer liable where carpenter hit another employee in the head with a hammer); *Samuels v. Southern Baptist Hospital*, 594 So.2d 571 (La.Ct.App.1992) (hospital liable where nurse's assistant raped a patient).

Notwithstanding these well-established principles, the majority writes that an act is not within the scope of employment where "the agent has no intention to perform any service for his employer, but instead seeks only to further some personal end." Majority Op. at 1536. In support of this proposition, the majority cites *Bennett v. United States*, 102 F.3d 486 (11th Cir.1996) which involved an off-duty soldier who accidentally shot a civilian with a privately owned handgun while socially visiting another soldier in the Army barracks. *Id.* at 487. This Court stated that the soldier's activities on the evening of the shooting "were unrelated to any employment relationship with the military, and were not

undertaken to further his employer's business." *Id.* at 494. This conclusion, however, rested on facts very different from those before us. In *Bennett,* there was no dispute that the soldier was off-duty, and was visiting the barracks "for purely personal reasons unrelated to his responsibilities as a soldier," which failed "to bear even the faintest connection with his duties as an employee of the United States Army." *Id.* at 490. Terry's and Silverman's harassment took place during work hours and at the work place. Most importantly, the soldier in *Bennett* was not performing **any** act on behalf of his employer when the shooting occurred, nor were his activities surrounding the shooting of "the same general nature as" or "incidental to" any authorized conduct. In the case before us, however, Terry and Silverman were charged with creating and maintaining a productive, safe work environment, while directing their employees in the performance of their duties. It is while they were engaged in their responsibilities that the harassment of Faragher occurred and, thus, was clearly "incidental to" authorized conduct.

The majority's use of *Spencer v. Assurance Co. of America,* 39 F.3d 1146 (11th Cir.1994), is also inapposite. In *Spencer* this Court found that an employee, hired for road-paving, was not acting within the scope of employment when he committed an intentional battery while fighting "to protect his sister." There was nothing in the fight relating to the employee's work or the manner in which he was instructed to perform it. Indeed, the Court specifically recognized that"this case lacks a sufficient nexus between the employee's job and his battery of another to raise even a jury question as to the scope of employment issue." *Id.* at 1149. The Court explicitly recognized that

> "under special circumstances, an employee's intentional battery of another may be said to have occurred within the employee's scope of employment." See, e.g., *Forster v. Red Top Sedan Service, Inc.,* 257 So.2d 95 (Fla. 3d DCA 1972) (directed verdict in favor of employer reversed where employee bus driver forced plaintiff's car off the road and then assaulted and battered the car's occupants after plaintiff allegedly delayed the employee from performing his job-related duties); *Columbia by the Sea, Inc. v. Petty,* 157 So.2d 190 (Fla. 2d DCA 1963) (jury question created as to the scope of employment question when maitre d' struck a customer after customer failed to pay his bill and called maitre d' a "bastard").

The majority also cites to Restatement §§ 235 and 236, arguing that in order to hold the employer liable, the employee must have intended to "serve the interests" of the employer. However, this is too narrow a reading of these sections, as under those provisions, an employer can also be held liable if there was an intent "to perform it as a part of or incident to a service on account of which he is employed." Applying all of the foregoing principles to the facts of this case, I believe the City of Boca Raton is liable under § 219(1) for the hostile environment created by Terry and Silverman.

Alternatively, I believe the City is liable in this case under § 219(2)(d), which holds a principal liable for the acts of an agent when the agent is aided in accomplishing the tort by the existence of the agency relationship. *See* Restatement § 219(2)(d). As with analysis under § 219(1), proper application of § 219(2)(d) requires courts to closely scrutinize the power structure within the workplace to determine the extent to which the particular agency

relationship has empowered the supervisor to use or abuse his position to accomplish the harassment. *See Vance,* 863 F.2d at 1515 (degree of authority and overall structure of the workplace are relevant to agency analysis); *Sparks v. Pilot Freight Carriers, Inc.,* 830 F.2d 1554, 1559 (11th Cir.1987) (adopting E.E.O.C. reasoning that employer's delegation of authority empowered supervisor to act). *See generally,* Oppenheimer, 81 Cornell L.Rev. at 89.

The record reveals that both Terry and Silverman were granted virtually unchecked authority over the work environment. In Terry's capacity as Marine Safety Chief, "[he] had the authority to supervise all aspects of the lifeguards' work assignments, to conduct counseling and oral reprimands and place reports of such disciplinary actions in the lifeguards' personnel files." Terry also interviewed and selected new lifeguards, subject to approval by higher management. Moreover, Terry held the highest management position in the Marine Safety Section and on the City's beaches. Thus, he was ultimately responsible for the general beach environment, including the public's safety, and as such, it was incumbent upon him to ensure optimal performance from the lifeguards. Silverman, as Marine Safety lieutenant, and then captain, supervised the "lifeguards' daily duties, including designation of the lifeguards' work assignments and staffing of shifts, and supervision of their physical fitness routines."

With respect to the City's involvement with the lifeguards, the court found that "the lifeguards' contacts with higher city officials ... were almost non-existent," and the City admits that, "Marine Safety headquarters was located at the City beach and was thus physically remote from City Hall." The lifeguards operated under an

extensive chain of command, with at least six levels of management between the lifeguards and the City Manager. Most importantly, although the City had a written sexual harassment policy, that policy was never disseminated among Marine Safety Section employees, and in fact, supervisors were never told or made aware of the City's sexual harassment policy. Indeed, the district court explicitly found that any procedures that the City had in place to deal with sexual harassment were ineffectual because of the City's failure to disseminate those procedures.

In sum, Faragher was completely isolated from the City's higher management, and Terry and Silverman directly controlled and supervised all aspects of her day-to-day activities. Furthermore, it is clear that the City had divested itself of all responsibility for the social climate of the lifeguards' work environment, that Terry and Silverman essentially were given unfettered responsibility for and control over that environment, and that the lifeguards had no effective avenue of redress with the City. Thus, under *Vance,* Terry and Silverman were acting with the requisite amount of authority as agents to bind the City as principal. This conclusion is supported by the fact that the acts of harassment were undertaken during the time and at the place of work and were "incidental to" the broad range of tasks the supervisors were authorized to do, *see* Restatement § 229 (defining scope of employment), as well as by the fact that Terry and Silverman were aided in accomplishing these acts by the existence of the agency relationship.

For the foregoing reasons, I would hold the City liable for Terry's and Silverman's creation of a hostile work environment of sexual harassment.

TJOFLAT, Circuit Judge, concurring in part and dissenting in part:

With the exception of appellant Beth Ann Faragher's Title VII claim, I concur in the court's disposition of this case. As for that claim, I cannot join the court's opinion because I agree with the district court that Faragher's proof demonstrated that the City of Boca Raton violated Title VII by requiring her to work in a hostile environment. The court accepts as not clearly erroneous the district court's finding that hostility in the form of abusive sexual harassment was a condition of Faragher's employment, but it holds that the City is not liable under Title VII because the City had no "actual knowledge" of the sexual harassment and "there was no basis for imputing knowledge [of it] to the City." Ante at 1540.[1] I disagree. Faragher's supervisor, Bill Terry, had

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1. I am confused by the court's use of the conjunction "and." To me, because the City is a corporation and must act through its agents, actual knowledge must be imputed knowledge. That is, information that an agent obtains in discharging his or her duties is imputed by operation of law to the corporation, thus giving the corporation actual knowledge of what the agent learned. Hence, when referring to a corporation, imputed knowledge is actual knowledge.

I am also confused by the court's conclusion that the City would be liable if it "knew or should have known" of the sexual harassment in question. This implies that the City could be held liable for simple negligence. A Title VII claimant, however, must establish that the employer *intended* the harassment. I believe that the court, in using this "knew or should have known" language, means that if a trier of fact could conclude from the evidence that the agent responsible for ensuring order in the workplace (including the prevention of severe and pervasive sexual harassment) knew that an employee was being subjected to a hostile environment, that knowledge would constitute the employer's knowledge.

knowledge of the harassment because he perpetrated the harassment. The City should be held liable for the sexual harassment Faragher experienced because it placed Terry in charge of Faragher's working environment and gave him the responsibility of maintaining order in the workplace.

I.

A.

Title VII of the Civil Rights Act of 1964, as amended, provides that

> [i]t shall be an unlawful employment practice for an employer–
>
> (1) to fail or refuse to hire or discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin.

42 U.S.C. § 2000e-2(a).

Title VII prohibits as a discriminatory condition of employment the employer's creation of an abusive working environment characterized by severe and pervasive sexual harassment. *Meritor Savings Bank v. Vinson*, 477 U.S. 57, 67, 106 S.Ct. 2399, 2405, 91 L.Ed.2d 49 (1986). "A discriminatorily abusive work environment . . . can and often will detract from employees' job performance, discourage employees from remaining on the job, or keep them from advancing in their careers." *Harris v. Forklift Systems*, 510 U.S. 17, 22, 114 S.Ct. 367, 370-71, 126 L.Ed.2d 295 (1993). "[D]iscriminatory

conduct ... so severe or pervasive that it create[s] a work environment abusive to employees because of their ... gender ... offends Title VII's broad rule of workplace equality." *Id.*, 510 U.S. at 22, 114 S.Ct. at 371.

For obvious reasons, most employers strive to maintain order in the workplace. Order enhances efficiency. For employers in the private sector, order enhances the potential for profit. For public employers, order enhances the image of officials who must stand for re-election and bureaucrats who report to them and seek job security. Disorder, the converse of order, prevents the workplace from operating at optimal efficiency. Sexual harassment that is severe and pervasive constitutes disorder. Hence, employers have an extra-legal incentive to prevent it. Title VII, because of the liability and associated costs it may impose, provides employers with an added, legal incentive to prevent this form of disorder.

There is always someone in charge of any workplace. Depending on the character of the business or the number of employees in the workplace, the designation of the person in charge may be explicit. Alternatively, the designation may be tacit. Unless the employer designates someone other than the person in charge of the workplace as the one responsible for maintaining order, I would hold that the person in charge of the workplace has the responsibility of preventing severe and pervasive sexual harassment.[2] I would hold

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2. This approach is consistent with the Supreme Court's directive in *Meritor* that, in determining which of the employer's agents or employees is responsible for preventing severe and pervasive harassment from permeating the workplace, "courts [must] look to agency principles for guidance," although "such common law principles may not be transferable in all their particulars to Title VII." 477 U.S. at 72, 106 S.Ct. at 2408. Title VII, as interpreted in *Meritor*, requires employers to take steps to ensure that sexual harassment does not permeate the workplace. To the extent that the application of common law agency principles frustrates Title VII's goal of eliminating such harassment–by effectively relieving the employer of the responsibility of pursuing that goal–those principles must yield. The court, however, in reaching today's decision, does not appear to have considered this point.

further that if the employer delegates to someone else the duty of policing the workplace for sexual harassment, the employer must make the designation unambiguously known to those laboring in the workplace; otherwise the designation would have no legal, or practical, effect.

B.

In the case at hand, the court does not dispute that Terry was in charge of the workplace. As Chief of the Marine Safety Section, "Terry had the authority to supervise all aspects of the lifeguards' work assignments; to give oral reprimands and place reports of disciplinary actions in personnel files; and to interview and select new lifeguards, subject to approval by higher management." Ante at 1533. The district court found that the City "had a written sexual harassment policy, [but failed] to disseminate said policy among Marine Safety Section employees," including Faragher. *Faragher v. City of Boca Raton*, 864 F.Supp 1552, 1560 (S.D. Fla. 1994). Because the City neither communicated the policy to these employees nor identified the person to whom complaints of sexual harassment were to be made, the responsibility for implementing the policy in Faragher's workplace necessarily fell to Terry.[3] Because he was aware that

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3. The court implies that someone in the Parks and Recreation Department management was responsible for implementing the City's policy against sexual harassment by

Faragher was working in a sexually abusive environment and did nothing to correct the situation, I would hold the City liable for the injury she sustained.

II.

As noted above, the City had a policy against sexual harassment in the workplace. The City, however, did not communicate the policy to the employees of the Marine Safety Section or identify the person to whom complaints of sexual harassment were to be made. Thus, the City effectively concealed from those employees the avenue for redress of grievances. This concealment troubles me for three reasons. First, I fear that the court's opinion dilutes the employer's duty under Title VII to maintain a workplace free of severe and pervasive sexual harassment. Second, the court's opinion places an undue burden on employees who wish to complain of harassment in the workplace. Third, the court's opinion has the potential to breed disrespect for the law.

A.

The court exonerates the City from liability because Faragher did not complain to someone in the Parks and

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observing that "neither Faragher nor [fellow lifeguard Nancy] Ewanchew complained to Parks and Recreation Department management about" the harassing conduct in question. Ante at 1533. By suggesting that Faragher had to find someone in the management of that department with whom to lodge her complaint, the court ignores the reality of Faragher's workplace. The Parks and Recreation Department management was located elsewhere and had little, if any, contact with the Marie Safety Section's employees, while Terry was close at hand and was "in charge" of virtually every aspect of Faragher's work environment.

Recreation Department management. The court does so even though Faragher had not been told to whom she should complain. An employer reading the court's opinion may conclude that it, like the City of Boca Raton, can escape Title VII liability by having a policy against sexual harassment but concealing from its employees the identity of the person to whom claims are to be made. Because such concealment would have the potential for reducing claims of sexual harassment, and thus the cost of doing business, an employer might choose to follow the City's footsteps. The employer's other alternative, of course, would be to identify the person to whom complaints are to be made and to have an efficient mechanism for investigating them and taking curative measures when necessary. No system is perfect, however. Thus, an employer with a model system in place cannot render itself immune from claims. In weighing the costs of the two alternatives, an employer may opt for the course the City took in this case. That course may yield more sexual harassment but less liability, and thereby dilute the employer's Title VII duty.

B.

To the extent that the court's opinion induces employers to conceal the identity of the person to whom complaints of sexual harassment are made, the opinion places an undue burden on employees who suffer such harassment. Under my approach, if the employee is not informed of the identity of the person to whom complaints are to be made, the employee would simply turn to the person in charge of the workplace. Under the court's approach, the employee must guess to which of the employer's agents or employees a complaint should be lodged. Depending on the circumstances, this could be

risky business. Among other things, the employee might err in selecting the person to whom to complain, in which case her complaint could go for naught.[4] Faced with this uncertainty of outcome, the employee might forego complaining and either suffer the harassment or terminate her employment.

C.

The scenarios depicted in subparts A and B above, which I submit are entirely plausible, will in time breed disrespect for the law. Although I am sure that the court does not intend such a result, I contend that the result is likely. For employers, escaping Title VII liability for sexual harassment in the workplace will be seen as a game–a game to be played with cards dealt from a deck composed of law of agency principles. The object of the game is to escape Title VII liability without affording employees the protection that Title VII purports to provide. For employees, Title VII will be seen as an empty promise–a mere sop, if you will–enacted by Congress to placate a constituency.

ANDERSON, Circuit Judge, concurring in part and dissenting in part:

With respect to Faragher's Title VII sexual harassment claim against the City, I agree with Judge Barkett that the district court should be affirmed. I agree

4. Lodging a complaint imposes on the employee certain costs, including embarrassment and disruption of working relationships. Where the employee does not know to whom to complain, it may be that she will complain to the wrong person and that her complaint will not be addressed properly. Where the employee faces the costs associated with lodging a complaint and

with much of what is said in Judge Barkett's opinion. I agree with Judge Barkett that the City was appropriately found liable pursuant to the theory of "direct liability." In addition to the facts pointed out by Judge Barkett relating to the severity and pervasiveness of the conduct constituting a hostile environment, I would rely upon the testimony regarding the intermediate supervisor, Gordon. When plaintiffs complained to him, he indicated that the City did not care. I think this evidence of the City's lack of concern also supports the district court's finding of constructive notice.

I also agree with Judge Barkett that the City could be liable under a theory of "indirect liability," i.e., pursuant to the agency principles upon which our previous hostile environment cases have relied. I need not decide the threshold level of authority which a supervisor must possess in order to impose liability on the employer under these principles. For example, I need not decide that every supervisor with some authority relating to personnel can impose liability on the employer. It is sufficient for the disposition of this case, in my judgment, that Terry was endowed by the City with sufficient authority to impose liability on the City. The City placed Terry in charge of this particular workplace and in charge of the plaintiffs and similarly situated employees. The following facts support the conclusion that Terry was endowed with "virtually unchecked authority over the work environment."[1] The City left Terry wholly unsupervised with respect to Terry's management of the

sees little likelihood that her complaint will yield any benefit, the employee would probably not complain.

1. Judge Barkett at 1543 (M/S at 10).

workplace including the setting of its environment; the City gave Terry no effective instructions with respect to its sexual harassment policy or any other policy related to the work environment; and the City did not disseminate its policy against sexual harassment to plaintiffs or similarly situated employees. Having thus endowed Terry with complete authority to set the workplace environment, I have no difficulty concluding that Terry's conduct in determining the nature of the work environment was within the scope of his authority, or at least that he was aided in the actions he took by the agency relationship. [2]

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2. I need not decide whether the foregoing facts support agency liability under the scope-of-employment prong or under the aided-in-accomplishing-the-tort-by-the-agency-relationship prong or both. As suggested by Judge Barkett's analysis, I suspect the analysis is similar under either prong.

APPENDIX B — OPINION OF THE UNITED STATES COURT OF APPEALS FOR THE ELEVENTH CIRCUIT DATED FEBRUARY 8, 1996

United States Court of Appeals,

Eleventh Circuit.

No. 94-4878.

Beth Ann FARAGHER, Nancy Ewanchew,
Plaintiffs-Appellants-Cross-Appellees,

v.

CITY OF BOCA RATON, a political subdivision of the State of Florida, Defendant-Appellee-Cross-Appellant,
Bill Terry, David Silverman, Defendants-Appellees.

Appeal from the United States District Court for the Southern District of Florida. (No. 92-8010-CIV-SH), Shelby Highsmith, District Judge.

Before COX, Circuit Judge, DYER, Senior Circuit Judge, and GOETTEL*, Senior District Judge.

COX, Circuit Judge:

In this case we must decide several important questions regarding hostile work environment sexual harassment under Title VII.

I. FACTS[1]

Beth Ann Faragher and Nancy Ewanchew worked as ocean lifeguards for defendant City of Boca Raton, Florida (the "City"), in the Parks and Recreation Department's Marine Safety Section. Only four to six of the forty to fifty lifeguards were female. The Marine Safety Headquarters was a small, one- story building with limited facilities, and all of the lifeguards shared the same locker room and shower. The tight quarters and high male-female ratio apparently led to a rambunctious atmosphere among the lifeguards.

During the relevant time frame, defendants Bill Terry and David Silverman acted as supervisors of the ocean lifeguards, Terry as Chief of the Marine Safety Section and Silverman as a Marine Safety lieutenant and then captain. Terry had the authority to supervise all aspects of the lifeguards' work assignments; to give oral reprimands and place reports of disciplinary actions in personnel files; and to interview and select new lifeguards, subject to approval by higher management. Silverman had supervisory authority over the lifeguards' daily duties, including designating work assignments and supervising physical fitness routines.

The Marine Safety Section was organized according to a clear chain of command. Lifeguards reported to Marine Safety lieutenants, and above them to captains; the captains reported directly to the Chief of the Marine Safety Section, who was directly supervised by the

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1 The facts are essentially drawn from the district court's Findings of Fact.

Recreation Superintendent; the Recreation Superintendent reported to the Director of Parks and Recreation, who reported to the City Manager. Lifeguards had almost no contact with City officials such as the Recreation Superintendent. Marine Safety Headquarters was in a remote location, far away from City Hall.

Marine Safety Chief Terry subjected both Faragher and Ewanchew to uninvited and offensive touching, and Ewanchew to offensive language as well. For example, Terry would put his arm around Faragher and rest his hand on her buttock. In a particularly egregious example of Terry's touching, Terry pressed himself against Ewanchew's buttocks and simulated sexual movement while the two were at the water fountain. Other female lifeguards similarly were subjected to Terry's uninvited and offensive touching and to his demeaning and offensive comments.

Lieutenant Silverman made offensive comments and gestures to both Faragher and Ewanchew. For example, in the presence of both Faragher and Ewanchew, as well as other lifeguards, Silverman engaged in a pantomime depicting cunnilingus. Examples of Silverman's offensive comments include saying to Faragher, after tackling her, "If you had tits I would do you in a minute," and to Ewanchew, "There are a lot of tits on the beach today." Silverman also made offensive remarks to other female lifeguards.

Neither Ewanchew nor Faragher complained to Parks and Recreation Department management about Terry's and Silverman's conduct while they were employed with the City or when they resigned. However, they both spoke about Terry's and Silverman's conduct with one of their supervisors, Marine Safety Lieutenant

and Training Captain Robert Gordon. In fact, most of the female lifeguards complained to Gordon about Silverman's language and conduct. The lifeguards did not speak with Gordon on a subordinate to superior basis; they spoke with him because they held him in high repute. Gordon did not report the complaints to his supervisor, Terry, or to any other City official.

Ewanchew resigned from her position with the City in April of 1989, saying that she was leaving because she had found a better job. At some time after her resignation, Ewanchew visited Terry and requested re-employment on a part-time basis. She was not re-employed. Faragher resigned in June of 1990 to attend law school. Her decision to leave was unrelated to the alleged sexual harassment. She did not discourage her sister from applying for a lifeguard position with the City. In April of 1990, Ewanchew wrote a letter to the City's Director of Personnel complaining that she and other female lifeguards had been sexually harassed by Terry and Silverman while she was employed by the City. The City did not know of Terry's and Silverman's conduct until receiving Ewanchew's letter. The City then investigated Ewanchew's complaint, determining that Terry and Silverman had engaged in some inappropriate conduct. The City reprimanded and disciplined them both.

II. PROCEDURAL BACKGROUND

In 1992, Faragher and Ewanchew sued the City, Terry, and Silverman. Faragher sued the City for sexual harassment under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e *et seq.* (Count I). Faragher and Ewanchew each sued Terry and Silverman for sexual harassment under 42 U.S.C. § 1983 (Counts II and III). Faragher and Ewanchew also asserted pendent state law

claims. Faragher and Ewanchew each sued Terry for battery (Counts IV and V) and the City for negligent retention and supervision of Terry (Counts VI and VII). The district court held a non-jury trial on all claims.

The district court entered judgment for Faragher on her Title VII claim against the City, awarding her $1 in nominal damages. The court held that Terry's and Silverman's offensive conduct was sufficiently severe and pervasive to alter the conditions of Faragher's employment by creating a hostile work environment. The court held that the City was directly liable for Terry's and Silverman's conduct under agency principles based on Terry's and Silverman's supervisory authority and the overall workplace structure. In addition, the court held that the City was indirectly liable for Terry's and Silverman's offensive conduct because the court's finding that the conduct was severe and pervasive "supports an inference of knowledge, or constructive knowledge, on the part of the City regarding Terry's and Silverman's sexual harassment."

The district court entered judgment for Faragher on her § 1983 claim against Terry and Silverman. Noting that the Eleventh Circuit has not recognized a § 1983 cause of action for sexual harassment, the court held that such a cause of action is cognizable based on the weight of authority from other circuits.[2] The court found that Terry and Silverman acted under color of state law based on

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[2] Neither Terry nor Silverman contends on appeal that sexual harassment is not cognizable under § 1983. The district court held that a sexual harassment claim under § 1983 has two elements: (1) sexual harassment, and (2) intent to harass based on membership in a particular class. The court held that the harassment prong is satisfied by showing actionable sexual harassment under Title VII.

their supervisory authority. The court found that Faragher had proved her § 1983 claim by showing actionable sexual harassment under Title VII and intent to harass based on membership in a particular class, i.e., females. The court rejected Terry's qualified immunity defense. The court awarded Faragher $10,000 in compensatory damages against Terry and Silverman, jointly and severally.

The district court entered judgment for Terry and Silverman on Ewanchew's § 1983 claim. The court held that Ewanchew did not prove her § 1983 claim because she failed to show actionable sexual harassment under Title VII.[3] Specifically, the court found that Ewanchew's request for re-employment after resigning "makes it illogical to find a perception of hostility in the work environment on her part." In addition, the court found that Ewanchew's testimony that Terry's and Silverman's conduct was intolerable at the time was not credible. The court held that Ewanchew therefore had not satisfied the requirement that an employee subjectively perceive the work environment to be abusive. *See Harris v. Forklift Systems, Inc.*, —U.S.—, —, 114 S.Ct. 367, 370, 126 L.Ed.2d 295 (1993).

The court entered judgment for Faragher on her battery claim against Terry and for Ewanchew on her battery claim against Terry. The court awarded Ewanchew $35,000 in compensatory damages and $2,000 in punitive damages. Faragher was awarded $500 in punitive damages.

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[3] As explained in note 2, the district court held that one element of a § 1983 sexual harassment claim is showing harassment under Title VII.

The court entered judgment for the City on both Faragher's and Ewanchew's negligent retention claims. The court held that its finding that the City had constructive notice of Terry's and Silverman's conduct for purposes of Title VII liability did not mean that the City had constructive notice of Terry's conduct for purposes of negligent retention liability. Applying to the City the reasonable employer standard, the court found insufficient proof that the City should have known of Terry's conduct before Ewanchew's letter.

Faragher and Ewanchew appeal. The City cross-appeals.

III. ISSUES ON APPEAL

The issues presented on appeal are: (1) whether, to recover under Title VII for hostile environment sexual harassment, an employee must subjectively perceive the work environment to be abusive at the time that she is employed; (2) whether the district court erred in relying on conduct of which Faragher was unaware in determining that Terry's and Silverman's conduct was sufficiently severe or pervasive to alter the conditions of her employment in violation of Title VII; (3) whether the district court erred in finding that Faragher was subjected to an abusive work environment and perceived the environment to be abusive; (4) whether, under Title VII, the City may be directly liable for Terry's and Silverman's hostile environment harassment of Faragher, regardless of its actual or constructive knowledge of that harassment; (5) whether, under Title VII, the district court erred in finding that the City had constructive knowledge of Terry's and Silverman's conduct based on its pervasiveness; and (6) whether, under Florida law, the district court erred in finding that the City had no

constructive knowledge of Terry's unfitness for purposes of the negligent retention claims.

We are not presented with any challenge to the district court's judgment for Faragher on her § 1983 claim against Terry and Silverman. Nor are we presented with a challenge to the district court's judgment for Faragher and Ewanchew on their battery claims against Terry.

IV. STANDARDS OF REVIEW

We review the district court's findings of fact under the clearly erroneous standard of review. *Pullman-Standard v. Swint,* 456 U.S. 273, 287-88, 102 S.Ct. 1781, 1789, 72 L.Ed.2d 66 (1982). The question of actual or constructive knowledge is an issue of fact reviewed for clear error. *Reich v. Department of Conservation and Natural Resources, State of Ala.,* 28 F.3d 1076, 1082 (11th Cir. 1994). We review the district court's conclusions of law and its application of law to facts *de novo. Massaro v. Mainlands Section 1 & 2 Civic Assn., Inc.,* 3 F.3d 1472, 1475 (11th Cir. 1993), *cert. denied,* —U.S.—, 115 S.Ct. 56, 130 L.Ed.2d 15 (1994).

V. DISCUSSION

B. *Ewanchew's Subjective Perception That Work Environment Was Abusive Under Harris.*

Ewanchew contends that the district court erred in holding that she did not satisfy the subjective prong of the hostile environment test in *Harris v. Forklift Systems,* —U.S.—, 114 S.Ct. 367, 126 L.Ed.2d 295 (1993). Under *Harris,* Title VII is not violated unless the victim of harassment subjectively perceives the work environment to be abusive, because otherwise the harassment has not

altered the conditions of the victim's employment. *Harris,* —U.S. at —, 114 S.Ct. at 370. The district court found that Ewanchew did not perceive her work environment to be abusive because her testimony to that effect was not credible and because she asked Terry to re-employ her at some time after she resigned.

Ewanchew approaches the district court's holding that she did not satisfy *Harris* from two different angles. First, she argues that the district court's factual finding that she did not perceive her work environment to be abusive is inconsistent with its finding that she suffered $35,000 in damages on her battery claim. According to Ewanchew, the $35,000 damages finding is correct and leads ineluctably to the conclusion that she perceived her work environment to be abusive. Ewanchew's second tack is to contend that the district court erroneously engrafted onto *Harris'* subjective prong a requirement for present-sense revulsion. *Harris* 's subjective prong is satisfied, she argues, by after-the-fact realization of the offensiveness of the perpetrator's conduct. Terry responds to both of Ewanchew's arguments by contending that the district court's finding is not clearly erroneous.

Ewanchew has not demonstrated that the district court's factual findings are inconsistent. On Ewanchew's battery claim, the court found that Terry's offensive touching caused Ewanchew $35,000 in damages for psychological or emotional injury. A finding of damages resulting from an offensive touching—even if the touching, when combined with other conduct, constitutes sexual harassment—does not necessarily mean that the victim of the touching perceived her *work environment* to be abusive. Although the district court makes no specific finding as to when Ewanchew suffered damages, Ewanchew's damages from the battery seem to have

occurred some time after she resigned from her lifeguard position with the City. In Ewanchew's Reply Brief and at oral argument, Ewanchew's counsel conceded that Ewanchew suffered a delayed reaction to the offensive conduct, but argued that Ewanchew's delayed reaction satisfies *Harris*. Notably, Ewanchew has pointed to no evidence in the record indicating that she suffered damages from the battery before she resigned.

Under this view of the battery damages award, the district court's findings are not inconsistent. The district court reasonably could have found that Ewanchew did not view her work environment as abusive but, after resigning, suffered emotional or psychological trauma from the offensive touchings. Thus, it is not inconsistent, under this view of the facts, to award damages on Ewanchew's battery claim while finding that Ewanchew did not satisfy *Harris*, at least as the district court read *Harris*.

Nor is the district court's finding that Ewanchew did not perceive her work environment to be abusive clearly erroneous. The district court found "not credible [Ewanchew's] present assertion that she found [Terry's and Silverman's] conduct intolerable, *then*." Furthermore, the court found that Ewanchew "appears to have tolerated such conduct not because she felt she had to but because it wasn't that important to her." In addition to these findings based on the credibility of Ewanchew's testimony, the court determined that it would be illogical to find a perception of hostility on Ewanchew's part in light of her request for a part-time job after she left the City's employ.

Ewanchew contends that, even if she did not perceive her work environment to be abusive at the time,

she satisfied *Harris* 's subjective prong so long as she felt offended or abused after the fact. The parties have not pointed us to any federal case addressing after-the-fact perceptions of abuse under *Harris*.[4] According to Ewanchew, the subjective prong's *raison d'etre* is satisfied by after-the-fact realization of the offensiveness of the perpetrator's conduct. The subjective prong, she argues, ensures that the alleged conduct injured this particular plaintiff. We cannot agree that this is the subjective prong's only purpose.

Harris 's subjective prong ensures that the alleged conduct altered the conditions of the plaintiff's employment. *See Harris*, —U.S. at —, 114 S.Ct. at 370. Otherwise, Title VII is not implicated. Title VII makes it unlawful "to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's ... sex." 42 U.S.C. § 2000e-2(a)(1). Sexual harassment constitutes discrimination based on sex but is actionable under Title VII only if it alters the terms or conditions of the victim's employment. *Meritor Savings Bank v. Vinson*, 477 U.S. 57, 67, 106 S.Ct. 2399, 2405, 91 L.Ed.2d 49 (1986). Hence *Harris* 's subjective prong: "if the victim does not subjectively perceive the environment to be abusive, the conduct has not actually altered the conditions of the victim's employment, and there is no Title VII violation." *Harris*, —U.S. at —, 114 S.Ct. at 370.

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[4] Ewanchew cites two cases from other circuits interpreting *Harris*'s subjective prong but neither addresses after-the-fact perceptions of abuse. *See Dey v. Colt Construction & Development Co.*, 28 F.3d 1446 (7th Cir. 1994); *King v. Hillen*, 21 F.3d 1572 (Fed. Cir. 1994).

Under *Harris,* then, Title VII is not violated when the victim of harassment does not perceive her work environment to be abusive at the time that she is employed. *But cf. Kimzey v. Wal-Mart Stores, Inc.,* 907 F.Supp. 1309 (W.D.Mo.1995) (interpreting *Harris* as not requiring well-defined, subjective belief of hostility at exact moment an incident occurs). An employee's conditions of employment are not affected by what happens after she resigns. After-the-fact realization of the offensiveness of conduct thus does not satisfy *Harris;* it is irrelevant to whether the employee's conditions of employment were altered. Thus, contrary to Ewanchew's contention, the district court did not err in requiring Ewanchew to prove that she perceived her work environment to be abusive during the term of her employment. Because she did not perceive her environment to be abusive, Terry's and Silverman's conduct did not alter the conditions of her employment and, therefore, she cannot recover for their conduct under Title VII.

C. *Whether Terry's and Silverman's Conduct Was Sufficiently Severe and Pervasive To Alter Faragher's Conditions of Employment.*

On its cross- appeal, the City contends that the district court erred in relying on conduct of which Faragher was unaware in determining that Terry's and Silverman's conduct was so pervasive and severe as to alter Faragher's conditions of employment. Faragher does not contend that the district court properly relied on conduct of which Faragher was unaware.

The district court's opinion is somewhat ambiguous as to this issue, but parts of the opinion make it at least arguable that the district court relied on conduct

of which Faragher was unaware in determining that Terry's and Silverman's conduct was so pervasive and severe as to alter Faragher's conditions of employment. The district court erred to the extent that, in making this determination, it relied on conduct of which Faragher was unaware. *See Edwards v. Wallace Community College,* 49 F.3d 1517, 1522 (11th Cir. 1995); *see also Hirase-Doi v. U.S. West Communications, Inc.,* 61 F.3d 777, 782 (10th Cir. 1995). In a case of hostile environment sexual harassment, an employee's conditions of employment cannot be altered by conduct of which she is unaware. Moreover, conduct of which an employee is unaware cannot contribute to her subjective view of the work environment as hostile. *Edwards,* 49 F.3d at 1522; *Hirase-Doi,* 61 F.3d at 782.[5]

The City argues that, if the district court had considered only conduct of which Faragher was aware, it could not have found that Faragher was subjected to an abusive work environment. The City further contends that the district court erred in finding that Faragher subjectively perceived her work environment as hostile or abusive in light of her apparent nonchalance toward her environment, her failure to complain, and her failure to caution her sister about applying for a job as a lifeguard with the City. Faragher responds that the evidence supports the district court's findings that Terry's and Silverman's conduct, as known to Faragher, was sufficiently severe and pervasive to create an abusive work environment, and that Faragher subjectively perceived her environment as abusive.

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5 Of course, evidence of harassment of which Faragher was unaware may be relevant to the extent that it corroborates her allegations.

If, as the City argues, the district court indeed relied on conduct of which Faragher was unaware in determining that her work environment was abusive, the extent of the court's reliance on that conduct is unclear. However, that question need not detain us. We have no doubt that the district court would have found that Faragher's work environment was abusive, both objectively and subjectively, based solely on the conduct of which Faragher was aware. Indeed, the record suggests that it might have been clear error for the district court, having credited Faragher's testimony, to find otherwise.

In determining whether a work environment is abusive or hostile, the totality of the circumstances must be considered. Relevant circumstances include: "the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance." *Harris,* —U.S. at —, 114 S.Ct. at 371. Our review of the record reveals that Faragher was subjected to frequent and severe discriminatory conduct by Terry and Silverman. While some of the conduct might be characterized as "mere offensive utterance," other conduct was physically threatening (for example, being tackled by Silverman) and humiliating (for example, Silverman's comments about Faragher's body, the terms he used to describe women, and his pantomime of oral sex). We need not catalogue all of the conduct to which Faragher was subjected, for we have no trouble concluding that Terry's and Silverman's conduct, as known to Faragher, was severe and pervasive enough to create an objectively abusive work environment.

We also conclude that the district court's finding that Faragher subjectively perceived her work

environment to be abusive is not clearly erroneous. The district court based its finding largely on the credibility of Faragher's testimony. The court considered Faragher's failure to complain or to caution her sister about applying for a lifeguard position, but concluded that other factors explained her actions. We cannot say that the district court clearly erred in its resolution of this issue.

D. *Direct Liability of City for Hostile Environment Sexual Harassment.*

The City also contends on its cross-appeal that the district court erred as a matter of law in holding the City directly liable for Terry's and Silverman's conduct under Title VII, without regard to whether the City had actual or constructive knowledge of the conduct. Citing *Steele v. Offshore Shipbuilding, Inc.,* 867 F.2d 1311 (11th Cir. 1989), the City argues that it may be liable under Title VII for hostile environment sexual harassment only indirectly through *respondeat superior;* that is, only if it knew or should have known of the sexual harassment and failed to take prompt remedial action. Faragher concedes that, under *Steele,* the City is not directly liable for Terry's and Silverman's conduct.

This is a pure hostile environment case. The district court acknowledged our admonition in *Steele* that holding employers strictly liable for a supervisor's sexual harassment is illogical in a pure hostile environment setting. The court expressly found that the City had no actual knowledge of Terry's and Silverman's sexual harassment before receipt of Ewanchew's letter. Nevertheless, relying on our decisions in *Huddleston* and *Vance,* the court held the City directly liable for Terry's and Silverman's conduct because it found that they were the City's agents. *See Vance v. Southern Bell Tel. & Tel.*

Co., 863 F.2d 1503, 1512 (11th Cir. 1989), *overruled on other grounds, Patterson v. McLean Credit Union,* 491 U.S. 164, 109 S.Ct. 2363, 105 L.Ed.2d 132 (1989); *Huddleston v. Roger Dean Chevrolet, Inc.*, 845 F.2d 900, 904 (11th Cir. 1988). It held that Faragher need not show either actual or constructive notice to the City, notwithstanding our statement in *Steele* that corporate liability exists in a pure hostile environment case only if the employer knew or should have known of the harassment. *Steele*, 867 F.2d at 1316.

The Supreme Court has declined to issue a definitive rule as to when a corporate defendant is liable for hostile environment sexual harassment under Title VII. *Meritor,* 477 U.S. at 72, 106 S.Ct. at 2408. From Congress's decision to define "employer" under Title VII to include the employer's agents, 42 U.S.C. § 2000e(b), however, the Court inferred that Congress intended for courts to look to common law agency principles in Title VII sexual harassment cases. *Meritor*, 477 U.S. at 72, 106 S.Ct. at 2408. This circuit has applied agency principles to the issue of corporate liability for sexual harassment on numerous occasions, including in *Steele, Vance,* and *Huddleston.*

Our cases establish the following rules. An employer is directly liable for sexual harassment when the harasser is acting as the employer's agent. *Steele,* 867 F.2d at 1316 n. 1; *Vance,* 863 F.2d at 1512; *Huddleston,* 830 F.2d at 904; *Sparks v. Pilot Freight Carriers, Inc.*, 830 F.2d 1554, 1558 (11th Cir. 1987). Thus, an employer is directly liable for sexual harassment by a supervisor or other employee acting within the scope of his employment. *See Sparks,* 830 F.2d at 1558 (citing Restatement (Second) of Agency § 219(1)). An employer also is directly liable, under agency principles, for sexual

harassment by a supervisor or other employee acting outside the scope of his employment if the supervisor or employee was aided in accomplishing the harassment by the existence of the agency relationship. *Id.* at 1559-60 (citing Restatement (Second) of Agency § 219(2)(d)).[6]

Applying these agency principles, we have held that an employer is strictly liable for *quid pro quo* sexual harassment. *Henson v. City of Dundee,* 682 F.2d 897, 909-910 (11th Cir. 1982). As we explained in *Steele,* a supervisor by definition acts as the company when engaging in *quid pro quo* harassment. *Steele,* 867 F.2d at 1316. The supervisor acts within the scope of his actual or apparent authority to hire, fire, discipline, or promote. Moreover, the supervisor uses the means furnished to him by the company to accomplish the harassment when using his apparent or actual authority to extort sexual consideration from the victim. *Id.* (quoting *Henson,* 682 F.2d at 910).

Whereas an employer is always directly liable for *quid pro quo* harassment, an employer rarely will be directly liable for hostile environment harassment; rather, liability will be *indirect.*[7] under agency principles, these seemingly disparate results make sense. A supervisor or other employee typically does not act as the company when he subjects an employee to a hostile work environment. Hence the distinction between liability for

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6 *Accord Gary v. Long*, 59 F.3d 1391, 1397 (D.C. Cir.), cert. denied — U.S. —, 116 S.Ct. 569, 133 L.Ed.2d 493 (1995); *Hirase-Doi*, 61 F.3d 777, 783 (10th Cir. 1995); *Karibian v. Columbia University*, 14 F.3d 773, 780 (2nd Cir.), *cert. denied* — U.S. —, 114 S.Ct. 2693, 129 L.ed.2d 824 (1994); *Bouton v. BMW of North America*, 29 F.3d 103, 106 (3rd Cir. 1994).

7 We discuss indirect employer liability in section V.D.

quid pro quo harassment and liability for hostile environment harassment:

> Strict liability is illogical in a pure hostile environment setting. In a hostile environment case, no *quid pro quo* exists. The supervisor does not act as the company; the supervisor acts outside "the scope of actual or apparent authority to hire, fire, discipline, or promote." Corporate liability, therefore, exists only through *respondeat superior;* liability exists only where the corporate defendant knew or should have known of the harassment and failed to take prompt remedial action against the supervisor.
>
> *Id.*

With respect to employer liability for pure hostile environment harassment, *Steele* and *Vance* appear to conflict.[8] *Steele* precludes direct employer liability in a pure hostile environment case, allowing only indirect liability if the employer knew or should have known of the harassment and failed to take prompt remedial action. *Id.* *Vance,* on the other hand, allows direct employer liability in a hostile environment case if the harasser acted as the employer's agent. *Vance,* 863 F.2d at 1514-15.

The district court correctly reconciled this precedent in holding that an employer may be liable in a hostile environment case if either (1) the employer knew or should have known of the harassment and failed to take prompt remedial action, or (2) the harasser acted as the

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[8] *Steele* and *Vance*, decisions issued almost contemporaneously, were the first cases in which we addressed the standard for employer liability for pure hostile environment harassment. *See Steele*, 867 F.2d at 1317; *Vance*, 863 F.2d at 1515.

employer's agent. However, as we explain below, only in an exceptional case will a harasser act as the employer's agent in creating a hostile work environment. This is not such a case. The district court erred in holding that Terry and Silverman acted as the City's agents in harassing Faragher.

The district court found that Terry and Silverman were the City's agents based on their supervisory authority and the overall structure of the workplace. We agree that Terry and Silverman were the City's agents for some purposes. But the relevant inquiry is whether they were acting as the City's agents in subjecting Faragher to a hostile work environment. *See Sparks,* 830 F.2d at 1558-59 (analyzing not whether the harasser was an agent generally but whether harasser acted as an agent when he harassed victim). Faragher does not contend that Terry and Silverman were acting within the scope of their employment when they made offensive remarks and gestures and touched her. And we have found no record evidence suggesting that they were acting within the scope of their employment when they harassed Faragher.[9]

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[9] This case is thus distinguishable from *Huddleston*, on which the district court relied in part in holding the City directly liable. In Huddleston, the harasser berated the victim for her job performance in the course of creating a hostile work environment. *Huddleston*, 845 F.2d at 904. Thus, the harasser acted within his supervisory authority to hire, fire, discipline, or promote. *See Steele*, 867 F.2d at 1317 n.2. Here, however, there is no evidence that Terry or Silverman acted within their supervisory authority in creating a hostile work environment. Significantly, in *Huddleston*, the harasser's conduct constituted *quid pro quo* harassment as well as hostile environment harassment. *See id.* Thus, by definition, the harasser acted as the company. Here, though, only hostile environment sexual harassment is alleged.

The district court relied on *Vance* in finding that Terry and Silverman were the City's agents for direct liability purposes. Plaintiff in *Vance* sued her employer for racial discrimination under 42 U.S.C. § 1981; the legal elements of a harassment claim under § 1981 were the same as they are under Title VII. *Vance,* 863 F.2d at 1509 n.3. She alleged, *inter alia,* that she was subjected to a hostile work environment and discriminatorily disciplined because of her race. *Id.* at 1511. The district court correctly instructed the jury that the employer was liable if a supervisor acting within the scope of his employment, as an agent of the employer, harassed plaintiff. *Id.* at 1514 n.10. The jury returned a verdict for plaintiff, but the district court granted the employer's motion for judgment notwithstanding the verdict. The district court held, *inter alia,* that the employer could not be held liable because it had adequate grievance procedures and plaintiff had failed to give the employer notice of the harassment. *Id.* at 1512. We reversed, holding that the employer's grievance procedures did not, as a matter of law, insulate it from liability. *Id.* at 1514.

We also held that an employer may be directly liable for the existence of a hostile work environment. *Id.* at 1514-15.[10] Because plaintiff in *Vance* alleged that her supervisor was an agent of the employer for direct employer liability purposes, we examined whether the evidence was sufficient for the jury to find the employer

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[10] We cited *Huddleston* for the rule that when the harasser acts as an agent of the employer for purposes of Title VII, and thus the corporate employer is directly liable. *Id.* at 1514. As explained in note 9, the conduct in *Huddleston* constituted both hostile environment and *quid pro quo* harassment.

directly liable through its agent, plaintiff's supervisor.[11] *Id.* We held that a reasonable jury could conclude from the evidence that the supervisor was acting as the employer's agent in creating the hostile work environment. *Id.* at 1515.

In so holding, we listed several factors relevant to whether a harasser is acting as the employer's agent in creating a hostile work environment: the supervisor's direct authority over the plaintiff, the overall structure of the workplace, and the relative positions of the parties. *Id.* The district court examined these same factors in this case in determining that Terry and Silverman were the City's agents. However, further scrutiny of *Vance* reveals that, while those factors were directly relevant to the allegations in *Vance,* they are not dispositive here.

In *Vance,* we based our agency analysis largely on the agency analysis in *Hamilton v. Rodgers,* 791 F.2d 439 (5th Cir. 1986). *See Vance,* 863 F.2d at 1515. In *Hamilton,* the Fifth Circuit held that two intermediate level supervisors were agents of the fire department under Title VII because "[t]hey had authority over matters such as car assignments and the staffing of shifts, and they *wielded this authority to Hamilton's detriment.* Even more important, they filed the critical reports that led to Hamilton's 1982 suspension." *Hamilton,* 791 F.2d at 442 (emphasis added). The supervisors had denied Hamilton a car assignment, scheduled him for the night shift, and given him poor evaluations, all for racially discriminatory

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[11] Though we focused in our opinion on whether the jury could find that plaintiff's first supervisor, Wagner, acted as the employer's agent, the evidence also showed that other supervisors acted as employer's agents in discriminatorily disciplining plaintiff. *See id.* at 1507-08, 1511.

reasons. *Id.* Thus, the supervisors' authority over Hamilton and the structure of the workplace showed that the supervisors were acting within the scope of their employment in violating Title VII.[12]

Similarly, in *Vance,* plaintiff had presented evidence from which the properly instructed jury could infer that the supervisor was acting within the scope of his employment when he created the hostile work environment. The evidence suggested that the supervisor had hung a noose over plaintiff's work station. *Vance,* 863 F.2d at 1506. The supervisor testified that he had constructed a device which looked like a noose, but explained "that it had been designed to desheathe cable to increase productivity." *Id.* We held that a jury could conclude from this evidence that the supervisor acted as the employer's agent in creating the hostile environment. *Id.* at 1515. Viewed in light of *Hamilton,* it is evident that *Vance* 's focus on the supervisor's authority (to discipline employees, handle union grievance proceedings, and make personnel changes) and the overall structure of the workplace was aimed at determining whether the supervisor was acting within the scope of his employment when constructing the device ostensibly designed to increase productivity.[13]

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[12] *Hamilton* involved allegations of discrimination in addition to just the creation of a hostile work environment. The Fifth Circuit seems to have predicated the employer's liability on conduct of the supervisors that did not form part of the hostile environment allegations. *See id.* Thus, it is not at all clear that the supervisors' authority and the overall structure of the workplace were relevant to the fire department's liability for the hostile work environment.

[13] Plaintiff's claim was based on allegations of discriminatory discipline as well as the noose incident. *Id.* at 1511. Though we did

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Here, the district court mechanically applied the factors listed in *Vance* without determining their relevance to whether Terry and Silverman were acting within the scope of their employment in harassing Faragher. The harassment here consisted of offensive comments, gestures, and touching. If, for example, as in *Vance,* Terry and Silverman had constructed something offensive and intimidating to women under the guise of trying to improve lifeguard performance, then their supervisory and disciplinary authority would support a finding that they acted as the City's agents in violating Title VII. But Terry's and Silverman's supervisory and disciplinary authority does not support a finding that they were acting within the scope of their employment in subjecting Faragher to offensive language, gestures, and touching. Thus, the district court erred in holding the City directly liable for that conduct.

Vance demonstrates that *Steele* overstates the case in saying that, in a pure hostile environment setting, an employer may be liable *only* when the corporate defendant knew or should have known of the harassment and failed to take prompt remedial action. An employer also may be directly liable if, as in *Vance,* the harasser acted as the employer's agent in creating the hostile work environment. Still, *Steele* accurately describes the rule for employer liability in the vast majority of hostile environment cases. *Vance* 's finding of direct employer

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not refer to the discriminatory discipline in finding that the jury reasonably could conclude that the employer was directly liable for its supervisors' conduct, the supervisors clearly were acting within the scope of their employment in taking disciplinary action against plaintiff. Thus, the employer would have been directly liable on that basis as well.

liability is unlikely to be replicated in pure hostile environment cases because the facts of that case were exceptional. Rarely will a supervisor or other employee act within the scope of his employment in creating a hostile work environment. In pure hostile work environment cases, therefore, *Steele* generally will govern employer liability.[14]

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[14] The only other possible ground for the City's direct liability would be that Terry and Silverman were aided in accomplishing the harassment by the existence of the agency relationship. *See Sparks*, 830 F.2d at 1559-60 (citing Restatement (Second) of Agency § 219(2)(d)). This basis for direct liability—like direct liability for acts within the scope of employment—typically occurs only in *quid pro quo* harassment cases. For example, in *Sparks*, the evidence showed that the harasser used the authority delegated to him by the company to assist him in the harassment; he repeatedly reminded the victim that he could fire her if she refused his advances. *Id.* at 1560. *See also Steele*, 867 F.2d at 1317 (limiting holding of *Sparks* to situations involving both *quid pro quo* and hostile environment harassment.) However, even in a hostile environment case, the existence of the agency relationship may aid in accomplishing the harassment. *See e.g., Gary v. Long*, 59 F.3d at 1397; *Kariban v. Columbia University*, 14 F.3d at 780. We therefore examine whether the district court's holding may be affirmed on this ground.

The evidence does not support a finding that Terry and Silverman were aided, within the meaning of the common law, in their harassment of Faragher by their agency relationship with the City. As the D.C. Circuit noted, a supervisor is always, in a sense, aided in accomplishing the tort by the existence of the agency because his responsibilities include close proximity to and regular contact with the victim. *Gary v. Long*, 59 F.3d at 1397. However, the common law rule does not use "aided" in such a broad sense. Rather, the employer is liable only if the harassment is accomplished by an instrumentality of the agency or through conduct associated with the agency status. *Id.* In *Vance*, for example, although the supervisor's conduct was egregiously

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D. *Indirect Liability of City for Hostile Environment Sexual Harassment.*

The district court found that the City had no actual knowledge of the sexual harassment but had constructive knowledge due to the harassment's pervasiveness. The City contends that the district court's finding that the City had constructive notice of the harassment is clearly erroneous and, therefore, that the City may not be held indirectly liable for the harassment. Faragher responds that the district court's finding that the sexual harassment was severe and pervasive enough to infer the City's knowledge is not clearly erroneous.

An employer is indirectly liable for hostile work environment sexual harassment if the employer knew or should have known of the harassment and failed to take prompt remedial action. *Steele*, 867 F.2d at 1316; *Vance*, 863 F.2d at 1512; *Henson*, 682 F.2d at 905.[15] A plaintiff can prove an employer's knowledge of harassment by showing that she complained to higher management. *Vance*, 863 F.2d at 1512; *Huddleston*, 845 F.2d at 904. The district court found that Faragher did not complain to higher management at the City. While several lifeguards

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offensive, it could be viewed as conduct associated with the agency status in that it was purportedly meant to increase productivity. Here, however, the offensive remarks, gestures, and touching cannot reasonably be viewed as conduct associated with Terry's and Silverman's status as agents of the City.

[15] Agency principles are the source of indirect employer liability as well as direct employer liability. If an employer knows or should know of sexual harassment and fails to remedy the situation, then the employer is liable for its own negligence. *See Hirase-Doi*, 61 F.3d at 783; *Bouton*, 29 F.3d at 106-07.

complained to Lieutenant Gordon, the district court found that he did not rank as higher management in the City and, therefore, that notice to him should not be imputed to the City.[16]

A plaintiff also can prove an employer's knowledge by showing that the harassment was pervasive enough to charge the employer with constructive knowledge. *Vance,* 863 F.2d at 1512; *Huddleston,* 845 F.2d at 904; *Henson,* 682 F.2d at 905. The district court believed that its finding that the conduct was sufficiently severe and pervasive to alter the conditions of Faragher's employment "supports an inference of knowledge, or constructive knowledge, on the part of the City regarding Terry's and Silverman's sexual harassment, making the City indirectly liable for such conduct." According to the court, the pervasiveness analysis applicable to finding that the work environment was abusive is the same as the analysis required to show the employer's knowledge.

We agree with the district court that the analyses are the same to the extent that a court must evaluate the totality of the circumstances both in determining whether the work environment was abusive and in determining whether the conduct was pervasive enough to put the employer on notice. *See Vance,* 863 F.2d at 1513. But we cannot agree with the district court's apparent belief that

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[16] In its discussion of the City's direct liability for Terry's and Silverman's conduct, however, the court held that Gordon's knowledge of Terry's and Silverman's conduct provides a basis for holding the city liable. This was error. For the City to be directly liable for Gordon's conduct, Gordon must have harassed Faragher while acting as the City's agent. However, Gordon did not harass Faragher; he knew about someone else's inappropriate conduct. And Gordon did not receive that information as the City's agent; he received it as someone held in high repute by his colleagues.

simply because conduct is pervasive enough to create an abusive work environment the employer should be charged with knowledge of the conduct. The question of notice to the employer is distinct from the question of the environment's abusiveness. Thus, the district court erred to the extent that it conflated the two inquiries.

The question of constructive knowledge is an issue of fact reviewed for clear error. *Reich,* 28 F.3d at 1082. There may be cases in which it is difficult to draw the line where conduct becomes so pervasive that the employer should have known about it. But this is not such a case. The district court expressly found that the City had no knowledge of Terry's and Silverman's conduct. Neither the district court nor Faragher has pointed to any factual basis for concluding that the City should have known of their conduct. The lifeguards were stationed at a remote location and had little contact with City officials. The district court clearly erred in finding that the City's knowledge may be inferred solely from the fact that the conduct was pervasive enough to create an abusive work environment.

E. *Constructive Knowledge of Terry's Unfitness Under Florida Negligent Retention Law.*

Finally, Faragher and Ewanchew contend that the district court erred in finding that, for purposes of their negligent supervision claims, the City did not have actual or constructive notice of Terry's conduct. Our review of the record leads us to agree with the City that the district court's finding that the City had no notice of Terry's conduct is not clearly erroneous.

VI. CONCLUSION

We reverse the district court's judgment for Faragher on her Title VII sexual harassment claim against the City. In all other respects, we affirm the district court's judgment.

AFFIRMED IN PART; REVERSED IN PART.

APPENDIX C - MEMORANDUM OF DECISION AND ORDER OF THE UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF FLORIDA DATED JULY 22, 1994

UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF FLORIDA
(WEST PALM BEACH DIVISION)

No. 92-8010-Civ
(Shelby Highsmith)

Beth Ann FARAGHER, Nancy Ewanchew,

Plaintiffs,

v.

CITY OF BOCA RATON, a political subdivision of the State of Florida, Bill Terry, David Silverman,

Defendants.

FINDINGS OF FACT AND CONCLUSIONS OF LAW

In 1992, Plaintiffs Beth Ann Faragher & Nancy Ewanchew, former lifeguards for the City of Boca Raton, brought this sexual harassment action against the City and two City employees, Bill Terry and David Silverman. The following claims in the amended complaint came before the Court for non-jury trial on June 21, 1994:

Count I: Faragher's Title VII claim against the City.

Count II: Faragher's § 1983 claims against Terry & Silverman.

Count III: Ewanchew's § 1983 claims against Terry & Silverman.

Count IV: Faragher's battery claim against Terry.

Count V: Ewanchew's battery claim against Terry.

Count VI: Faragher's claim for negligent retention and supervision of Terry against the City.

Count VII: Ewanchew's claim for negligent retention and supervision of Terry against the City.

Having received documentary and testimonial evidence, having heard arguments of counsel, and being otherwise fully advised in the premises, the Court makes its findings of fact and publishes its conclusions of law.

FINDINGS OF FACT

A. The Marine Safety Section

1. Plaintiffs Beth Ann Faragher and Nancy Ewanchew are two females who formerly worked as ocean lifeguards in the Marine Safety Section of the Parks and Recreation Department for Defendant City of Boca Raton ("City").

2. The City employed Faragher on an intermittent basis from September, 1985, through June, 1990, and Ewanchew from April, 1987, through April, 1989.

3. Defendant Bill Terry was the Chief of the Marine Safety Section throughout the plaintiffs' tenure with the City. In December, 1990, however, Terry was transferred to the position of Aquatics Planner, which carries no supervisory authority.

4. Defendant David Silverman was hired by the City as an ocean lifeguard in January, 1980, was promoted to lieutenant in July, 1985, and to captain in June, 1989.

5. The reporting hierarchy within the Marine Safety Section during plaintiffs' employment was as follows: ocean lifeguards reported to Marine Safety lieutenants, and above them to Marine Safety captains; the captains reported to the Chief of the Marine Safety Section, who was directly supervised by the Recreation Superintendent; the Recreation Superintendent reported to the Director of Parks & Recreation who, in turn, reported to the City Manager.

6. The Court specifically finds that both Marine Safety lieutenants and Marine Safety captains acted in a supervisory capacity vis-a-vis the ocean lifeguards. In particular, the Court finds that Marine Safety Chief Bill Terry, Marine Safety Lieutenant, and later Captain, David Silverman, and Marine Safety Lieutenant, and later Training Captain, Robert Gordon were supervisors of the ocean lifeguards.

7. The Court, however, specifically finds that neither Terry, nor Silverman, nor Gordon had the standing necessary to qualify as higher management for the City.

8. As Chief of Marine Safety, Terry reported to the Recreation Superintendent, which position was held

by Lorraine Gardner from 1974 to 1988, by Sandy Dioli-Kumm from 1988 to 1989, and by Buddy Parks thereafter.

9. The City hired its first female lifeguard in 1977. During the time of the plaintiffs' employment, not more than four to six lifeguards, out of a total force of between forty and fifty, were female.

10. The Marine Safety Headquarters is a small, one-story building, which includes a small office, a meeting room, and a locker room. Because of the limited facilities, all of the guards share the same locker room and shower.

11. The confined space at the headquarters building, along with the disproportionate ratio of female to male lifeguards, were in and of themselves conducive to a sort of camaraderie that might, in retrospect, be considered somewhat boisterous. Despite this apparent rambunctiousness, the Court finds credible Ewanchew's statement that the atmosphere in the locker room was respectful among members of a particular shift.

12. In April, 1989, Ewanchew resigned her position with the City. Her stated reason for leaving was that she had found a better job. Thereafter, Ewanchew worked as a lifeguard for Palm Beach County and for the City of Delray Beach. Some time after she had resigned from her position with the City, Ewanchew visited Terry and requested reemployment on a part-time basis. Ewanchew, however, did not become reemployed by the City.

13. Faragher had worked for the City mostly on a part-time and summer basis while attending college. In

June, 1990, Faragher resigned her position to attend law school. Faragher's decision to leave the City was unrelated to the alleged sexual harassment. Moreover, Faragher did not discourage her own sister from applying for a position as a lifeguard with the City.

B. Bill Terry's conduct

14. It is manifestly clear to the Court that the repute in which Terry was held by his co-workers in the Marine Safety Section was poor. Terry apparently exuded an aura of hostility to most of his subordinates in that section. In short, he was anything but dear to them. Even in the testimony of Captain Richard Morrison, who had worked under Terry for ten years, the Court detected a note of what could at best be characterized as detachment toward his superior. In an apparent effort to mask these feelings, Captain Morrison's responses were somewhat evasive and, when unavoidable, terse.

15. Terry had a propensity to touch female employees on various parts of their anatomies, including the waist, neck, and buttocks. The Court specifically finds that all incidents of touching by Terry, testified to by the witnesses at trial, were uninvited.

16. Further in this regard, the Court has concluded that Terry's testimony denying specific acts testified to by other witnesses is not credible. The Court attempted to reconcile these obvious conflicts in testimony so as not to impute falsehood to some witnesses, particularly Terry, without success. Therefore, the Court finds Terry's testimony in the face of the testimony of other witnesses, substantially less than credible.

17. A particularly egregious incident involving Terry and Ewanchew occurred at the water fountain in the meeting area of the headquarters building. As described by Ewanchew, Terry pressed himself against Ewanchew's buttocks and moved his hips simulating sexual movement.

18. In another incident testified to by Ewanchew, Terry touched Ewanchew on one breast and on the buttocks.

19. The Court finds credible Ewanchew's testimony that Terry would put his arm around Faragher and let his hand rest upon her buttock. Although Faragher's testimony was not as effective as Ewanchew's, the Court also finds quite credible Faragher's testimony regarding Terry's uninvited touching of her buttocks.

20. With regard to Terry's use of language, the Court finds that his remarks in Ewanchew's presence were more directed toward other women. One example is a remark to Ewanchew that Faragher was male-like because she had no breasts.

21. Former lifeguard Beverly Barta both witnessed and experienced offensive conduct on the part of Terry. The Court finds Barta's testimony that she found Terry's touching offensive most credible. According to Barta, Terry touched her on the buttocks without her consent and she avoided him afterwards. The Court finds incredible Terry's specific denial of Barta's assertions, whom the Court found made a highly credible, reliable, and impartial witness.

22. The Court finds credible former lifeguard Jamie Herrington's testimony that Terry placed his hand

on her thigh, and that Terry referred to women as "cunts" and "bitches." According to Herrington, however, neither Ewanchew nor Faragher complained to her about Terry.

23. The Court finds credible former lifeguard Victoria Bonner's testimony that Terry, on their first interview, asked her if she was going to "fuck" or "screw" all of the male lifeguards like the rest of the female lifeguards, and that she avoided him thereafter.

24. The Court finds credible former lifeguard Gayle Nye's deposition testimony that she was the subject of several instances of offensive touching by Terry, such as putting his arm around her hip. Nye also observed Terry touching other lifeguards, including Ewanchew and Faragher.

25. The Court finds credible former Marine Safety Section secretary Kathy Buhr's testimony that she did not invite, but was the recipient of, touching by Terry, such as neck rubs. Buhr further testified that she did not object to, nor take offense at such actions.

26. The Court discounts former Marine Safety Section secretary Janice Chisesi's testimony. Although Chisesi admitted to some instances of touching by Terry in the form of neck rubs, she stated that she did not find these offensive. At the same time she portrayed herself as a very proper person, who would be offended by the use of off-color language in her presence. This inconsistency in Chisesi's testimony may be explained by her current position as secretary to the City's Recreation Manager.

C. David Silverman's conduct

27. The Court finds that an incident occurred where Silverman tackled Faragher. The Court finds credible Faragher's testimony regarding the following statement by Silverman directed to Faragher: "If you had tits I would do you in a minute." With regard to these incidents, the Court disbelieves Silverman's denial of their occurrence.

28. The Court also finds that Silverman did engage in a pantomime depicting cunnilingus by flicking his tongue, in the presence of both Faragher and Ewanchew, despite Silverman's denial of his having engaged in such conduct.

29. Ewanchew testified that Silverman was her lieutenant and he would make the rounds of the beach in that capacity. While making these rounds, Silverman made the following remark to Ewanchew, "You'll be making the rescues today, because I'm the boss." Silverman also made inappropriate, but not sexually oriented, remarks to Ewanchew, such as, "There are a lot of tits on the beach today."

30. According to Ewanchew's credible testimony, Silverman used the term "helmet" to refer to a man's penis. The Court does not find credible lifeguard Red Rothberger's attempt to impute the use of this term on Ewanchew. In light of other witnesses' corroborating testimony, however, the Court finds truthful Rothberger's attribution of the term "red flag day," referring to her menstruation, to Ewanchew. The term "red flag" among lifeguards means "no swimming."

31. The Court found some of Ewanchew's testimony regarding Silverman exaggerated, such as her dreams about Silverman chasing her and about Terry and

Silverman shooting her, her husband, and infant child in the courtroom. Despite these exaggerations, the Court found Ewanchew fairly credible, albeit it was obvious that she had an ax to grind. The problem with Ewanchew's credibility stems in part from the Court's finding credible her allegations of the conduct by both Terry and Silverman but finding not credible her "then" feeling of intolerability. She appears to have tolerated such conduct not because she felt she had to but because it wasn't that important to her. Moreover, Ewanchew stated that she was never propositioned by either Terry or Silverman.

32. Ewanchew's credibility also suffered by her refusal to admit that she had not graduated from Miami Dade Community College. She avoided a direct response on this issue by stating that she had intended to finish. Ewanchew's prevarication about her educational background in her application for employment with the City appears to have made her more sensitive to some of the remarks made by Silverman.

33. Silverman testified to conversations with Ewanchew about his sexual activities with others, as well as discussions about sexual positions. Silverman also stated that Ewanchew confided in him about her sexual activities with other males, such as oral sex with fellow lifeguard Dan McCarthy. Finally, Silverman described how Ewanchew would expose her breasts to him in a playful manner. The Court found none of this testimony to be credible, particularly because of Silverman's unsuccessful attempt to present a relaxed demeanor on the witness stand.

34. The Court finds credible Jamie Herrington's testimony that Silverman referred to her nipples being apparent under the cloth of her bathing suit because it

was cold, and Silverman's remark that he would like to "eat between her legs." The latter comment took place only in her presence. Moreover, neither Ewanchew nor Faragher complained to Herrington about Silverman. According to Herrington, Silverman "cleaned-up his act" after he was promoted to Marine Safety captain in June, 1989.

35. The Court finds credible former lifeguard Kelly Evans' deposition testimony that Silverman commented on her breasts, but that his comments did not bother her. Although she was friends with Faragher, the two never discussed sexual harassment. Evans also testified in her deposition that Ewanchew used the term "red flag day."

36. The Court finds credible Gayle Nye's deposition testimony regarding Silverman's use of offensive language when addressing her. On her first day on the job, Silverman said to her, "I want to lick your clit." On another occasion, after she had blown an air horn close to his ear, Silverman said to her, "What the fuck are you doing, you cunt, doing that in my ear!" Although he denied using such language, Silverman admitted to coming down hard on Nye during the air horn incident, which he claims caused him ear discomfort for some time afterwards.

37. As previously mentioned, the Court found Beverly Barta to be a most credible witness. Barta both witnessed and experienced offensive conduct from Silverman, as well as from Terry. Thus, she corroborated the existence of a hostile atmosphere as a result of Terry and Silverman's conduct.

38. Although Silverman was reprimanded for using the words "Huck U" doing a beach workout, the Court was not impressed with the significance of this incident upon the plaintiffs' case.

D. Color of state law

39. Based on its previous finding that both Terry and Silverman were supervisors of the ocean lifeguards, the Court finds that Terry and Silverman's sexual harassment conduct toward the lifeguards, specifically toward Faragher and Ewanchew, was under color of state law.

40. This finding is further supported by Beverly Barta's highly credible assertion that she was "blackmailed" into signing an undated resignation letter

by Silverman and Terry; and by Bender's testimony that he discovered this recurrent practice on the part of Terry during his investigation of Ewanchew's complaints.

E. The City's role

41. On April 23, 1990, Ewanchew wrote a letter to Richard Bender, Director of Personnel for the City, complaining that, during the time she was employed by the City, she and other female lifeguards had been sexually harassed by Terry and Silverman.

42. Based on Bender's investigation of Ewanchew's complaint, the City determined that there had been some inappropriate conduct on the part of Terry and Silverman. The City reprimanded both Terry and Silverman for that conduct on June 26, 1990, imposing a choice of disciplinary action in the form of suspension without pay or forfeiture of annual leave. Terry and Silverman forfeited 160 and 40 hours of annual leave, respectively.

43. The Court finds Bender's testimony, in some measure, quite credible. Upon receiving Ewanchew's complaint, Bender moved quickly to investigate and discover specific acts on the part of Terry and Silverman which, in Bender's view, may have constituted inappropriate behavior. Bender's testimony regarding what he was told during his investigation was truthful, particularly with regard to Faragher's characterization of Terry's touching her as "fanny pats." The Court, however, does not quite accept Bender's assessment, based on his interview of Faragher, that Faragher did not indicate apprehension of both Terry and Silverman.

44. With regard to Bender's conclusions, and the discipline imposed upon Terry and Silverman as a result of Bender's recommendation, the Court does not find nor rule that this action is relevant to the issues presented at trial. Nevertheless, the Court notes that Bender exhibited a somewhat cavalier attitude toward the severity of Terry and Silverman's conduct, and its potential effect upon the City. Indeed, the Court expressly finds that Terry's and Silverman's sexual harassment conduct toward females in the Marine Safety Section was both severe and pervasive. In reaching this conclusion, the Court finds that the witnesses for the defense failed to overcome the weight of the plaintiffs' evidence regarding the degree and prevalence of Terry and Silverman's offensive conduct. Indeed, the Court finds that considerable corroborating evidence was presented at trial regarding the hostile atmosphere created by Terry and Silverman.

45. Prior to Ewanchew's letter, neither Ewanchew, nor Faragher, nor any other lifeguard had complained to the Parks and Recreation Department management about any alleged sexual harassment by Terry and Silverman.

46. As part of her duties as Recreation Superintendent, Sandy Dioli-Kumm occasionally counseled some of the lifeguards. Ewanchew came to see Dioli-Kumm to discuss work-related issues on several different occasions. Ewanchew never mentioned anything about sexual harassment or offensive words or touching by Terry or Silverman. The Court, however, does not lend much credence to the balance of Dioli-Kumm's testimony, particularly her statement that she engaged in "covert" observation of Marine Safety personnel because she found them to be "sophomoric."

47. The Court finds the testimony of Lorraine Gardner, Dioli-Kumm's predecessor in the position of Recreation Superintendent, not credible and wholly without weight. Gardner's responses appeared rehearsed and she showed favoritism toward the City. One such obviously contrived, and less than credible, response on the part of Gardner was that she had "never" had "any" female lifeguards come to her office about "anything."

48. Although Faragher and Ewanchew did not complain to higher management, they did speak about Terry and Silverman's conduct to former Marine Safety Lieutenant and Training Captain Robert ("Flash") Gordon. Moreover, the majority of the female lifeguards complained to Gordon about Silverman's language and conduct. The lifeguards talked to Gordon, not on a subordinate to superior basis, but because of the high repute in which he was held by members of the Marine Safety Section. Gordon did not report these complaints to his supervisor, Bill Terry, or to any other City official. He did not feel that it was his place to pass complaints on to his superiors. According to Ewanchew's testimony, Gordon responded to her complaints by stating that the City just didn't care.

49. With regard to Gordon's testimony, the Court notes that he was obviously uncomfortable on the witness stand. Gordon conceded that he had been unhappy over Silverman's, instead of his, promotion to full-fledged Marine Safety captain. Also, Gordon admitted that he had sued the City and the two individual defendants, but that the suit had terminated. It is obvious from his demeanor on the witness stand that Gordon was hesitant to "take sides" in the present litigation, and that he limited his testimony accordingly.

50. With regard to Ewanchew's waiting a year after leaving the City's employment to write to Bender complaining about Terry and Silverman, the Court finds credible Ewanchew's statement that she was reluctant to complain prior to becoming tenured in her new position. The Court finds, however, that the contemporaneous firing of her then boyfriend Dan McCarthy, a former City lifeguard, contributed to Ewanchew's decision to write to Bender.

51. The City had a written sexual harassment policy, promulgated on February 26, 1986. The policy was contained in a memorandum from the City Manager, addressed to all employees. On May 7, 1990, the City revised and reissued its policy against sexual harassment in the form of a Personnel Policy and Procedure Memorandum.

52. Notwithstanding the existence of a written policy against sexual harassment, the Court finds a complete failure on the part of the City to disseminate said policy among Marine Safety Section employees. Neither Terry nor Silverman were ever told or made aware of the City's sexual harassment policy prior to Bender's investigation of Ewanchew's charges. Ewanchew herself never got a copy of the sexual harassment policy during her tenure with the City. The City, therefore, did not discharge its duty under the EEOC guidelines regarding the maintenance of an effective sexual harassment policy.

53. The same union bargaining unit has represented the lifeguards and lieutenants working for the Marine Safety Division since sometime before 1985. The unit has a collective bargaining agreement with the City, which includes an employee grievance and arbitration procedure. Faragher and Ewanchew did not initiate

grievance proceedings. In light of the City's lack of dissemination of its sexual harassment policy, the Court finds that Faragher and Ewanchew's failure to avail themselves of grievance proceedings, in and of itself, does not excuse the City from responsibility for the conduct of Terry and Silverman.

54. The Court does not find that the City's management knew of the respective acts complained of by Faragher and Ewanchew prior to Bender's receipt of Ewanchew's letter. Nor does the Court impute to the City Gordon's actual knowledge of the lifeguards' complaints regarding Terry's and Silverman's conduct, despite Gordon's supervisory position. As previously noted, the Court does not find that Marine Safety captains ranked as higher management in the City.

55. According to Beverly Barta's credible testimony, she both experienced and witnessed offensive conduct on the part of Terry and Silverman. However, Barta testified that she did not hear others complain about Terry and Silverman. The Court assigns the highest level of credibility to Barta's testimony due to her candor, responsiveness, and directness. Her lack of awareness of other lifeguards' complaints about Terry and Silverman's conduct casts doubt on the City's ability to be aware of such conduct. In resolving this issue, the Court has taken into consideration the fact that there were only four female lifeguards working at the time Barta worked for the City and that Barta worked part-time. The Court has also considered the uniqueness of the lifeguard unit which, although part of the City, was not as aligned as other departments and was far enough away from City Hall as to constitute a remote location. In light of these factors, the Court concludes that Barta's lack of awareness

does not, in and of itself, excuse the City from responsibility for the conduct of Terry and Silverman.

F. Plaintiffs' damages

56. The Court finds credible the opinion of defense expert, Dr. I. Bruce Frumkin, that Ewanchew does not suffer from post-traumatic stress syndrome, but that she is extremely depressed. According to Dr. Frumkin, Ewanchew would benefit from one to two years of psychological treatment. Because he only conducted an abbreviated evaluation of Ewanchew, Frumkin expressed no opinion on the effect of sexual harassment upon her.

57. The Court finds the testimony of plaintiffs' expert, Dr. Glenn R. Caddy, highly credible and qualified. According to Dr. Caddy, Ewanchew was extremely upset and depressed when he first saw her, due to the present litigation. He found that she had suffered sexually oriented mistreatment by some of the people with whom she had dealt in the past. Although he has no present diagnosis for Ewanchew, he noted that her current state relates back to childhood problems, which make her more vulnerable to sexual trauma than someone without her prior experiences.

58. Although Faragher visited Dr. Caddy once, she did not follow through with psychological treatment. Moreover, Faragher did not seek psychiatric care from any other professional.

55.[sic] Ewanchew is entitled to compensatory damages in the amount of $ 35,000.00

59. Faragher is entitled to compensatory damages in the amount of $ 10,000.00.

60. Silverman is not liable for punitive damages.

61. Terry is liable for $ 2,500 in punitive damages.

CONCLUSIONS OF LAW

In its conclusions of law, the Court addresses in turn each of the claims considered at the trial of this action.

1. Faragher's Title VII claim against the City (Count I)

Courts recognize two theories under which plaintiffs may pursue Title VII claims for sexual harassment: (1) quid pro quo; and (2) hostile environment. Steele v. Offshore Shipbuilding Inc., 867 F.2d 1311, 1315 (11th Cir. 1989). Faragher presents a hostile environment claim. Hostile environment sexual harassment occurs when an employer's conduct "has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment." Meritor Sav. Bank, FSB v. Vinson, 477 U.S. 57, 65, 91 L. Ed. 2d 49, 106 S. Ct. 2399 (1986).

The elements of a prima facie case for hostile environment sexual harassment are:

(1) the employee belongs to a protected group;

(2) the employee was subject to unwelcome sexual harassment;

(3) the harassment complained of was based upon sex;

(4) the harassment complained of affected a "term, condition, or privilege" of employment; and

(5) respondeat superior.

Henson v. City of Dundee, 682 F.2d 897, 903-05 (11th Cir. 1982).

The first three elements of the prima facie case do not require much analysis. As a female, Faragher belongs to a protected group. Faragher was subject to unwelcome sexual harassment in the form of uninvited touching by Terry on the buttocks, in the form of offensive comments by Silverman such as, "If you had tits I would do you in a minute," and in the form of an offensive pantomime by Silverman mimicking cunnilingus. In this regard, the Court finds that Faragher made out a prima facie case as to Terry's touching and as to offensive language and gestures on the part of Silverman. Terry and Silverman directed their conduct toward the female lifeguards and secretaries in the Marine Safety Section. Thus, the harassment complained of by Faragher was based upon her being a female.

Whether the harassment complained of affected a "term, condition, or privilege" of employment

The fourth element of the prima facie case requires closer scrutiny. "When the workplace is permeated with discriminatory intimidation, ridicule, and insult that is sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment, Title VII is violated." Harris v. Forklift

Systems, Inc., 114 S. Ct. 367, 371 (1993). Whether an environment is hostile or abusive can be determined only by looking at all the circumstances. Id. The factors to be considered may include:

> - the frequency of the discriminatory conduct;
>
> - its severity;
>
> - whether it is physically threatening or humiliating, or a mere offensive utterance;
>
> - whether it unreasonably interferes with an employee's work performance;
>
> - the effect on the employee's psychological well-being, which is relevant to determining whether the plaintiff actually found the environment abusive.

Id.

Terry had a propensity to touch female employees of the Marine Safety Section on various parts of their anatomies without their consent. Former lifeguards Ewanchew, Faragher, Barta, Herrington, and Nye and former secretaries Buhr and Chisesi were the recipients of uninvited touching by Terry. Terry touched Ewanchew's buttocks and breast, Faragher's buttocks, Barta's buttocks, Herrington's thigh, Nye's hip, and Buhr's and Chisesi's necks. All except the secretaries credibly testified that they found such touching offensive. In addition, Terry used offensive language when speaking to female employees such as Ewanchew, Herrington, and Bonner. Terry described Faragher to Ewanchew as "male-like" because Faragher had no breasts. In speaking to Herrington, Terry referred to women as "cunts" and

"bitches." Terry asked Bonner if she was going to "fuck" or "screw" her male co-workers. Silverman tackled Faragher and stated to her, "If you had tits I would do you in a minute." He used the word "helmet" to refer to a man's penis when speaking to Ewanchew. He mimicked cunnilingus by flicking his tongue in the presence of Faragher and Ewanchew. He commented to Herrington that her nipples showed through her swimsuit and that he would like to "eat between her legs." He made a comment to Evans about her breasts. He stated to Nye that he wanted to "lick her clit" and used the words "fuck" and "cunt" when complaining about her blowing an air horn close to his ear. All except Evans found such remarks offensive.

Based on the number of lifeguards that testified to such conduct, the Court finds that Terry's and Silverman's offensive conduct occurred fairly frequently. The Court also finds that the uninvited touching, the use of the cited terms, and the mimicry constitute fairly severe conduct. In this regard, the Court rejects the defendants' characterization of Terry's and Silverman's language as "banter." The Court finds a significant difference between the consensual sprinkling of off-color terms into everyday conversation and the recurrent use of terms such as "cunt" and "bitch" by males in their conversations with females. Moreover, the Court finds that uninvited touching, the use of words like "cunt" and "bitch," and a pantomime of oral sex constitute conduct that humiliates women.

The Court finds that Terry's and Silverman's conduct unreasonably interfered with Faragher's work performance by promoting an environment where female lifeguards were considered fair game for uninvited touching and offensive remarks. The Court has recognized

that the level of camaraderie among the lifeguards in the Marine Safety Section bordered on boisterousness due to the disproportionate ratio of female to male lifeguards and the cramped quarters where the lifeguards were often running into each other. Camaraderie, however, is not synonymous with the lack of respect evidenced by Terry's and Silverman's conduct toward their female co-workers, including Faragher.

The effect of the environment created by Terry's and Silverman's conduct upon Faragher is more difficult to quantify. Based on Faragher's testimony, the Court has no doubt that Faragher neither invited nor appreciated her supervisors' conduct. Faragher, however, seems to have gone about her business despite such conduct without complaining to anyone except Gordon. Indeed, Faragher does not appear to have found the Marine Safety Section atmosphere sufficiently adverse to caution her own sister against applying for a position there. Faragher's position as a part-time and summer employee, and her concomitant college studies, may help explain her apparent nonchalance regarding the environment created by Terry and Silverman. Moreover, Faragher does not appear to have been exposed as much as Ewanchew to overt physical acts by Terry. Looking at the totality of the circumstances, therefore, the Court finds Terry's and Silverman's conduct sufficiently severe or pervasive to alter the conditions of Faragher's employment and create an abusive working environment, despite Faragher's attenuated reaction to such environment.

Respondeat superior

A plaintiff may prove the fifth element of a hostile environment claim either directly or indirectly. To prove this element, the employee "must show that the employer

knew or should have known of the harassment in question and failed to take prompt remedial action." Henson, 682 F.2d at 905. "The employee can demonstrate that the employer knew of the harassment by showing that she complained to higher management of the harassment, or by showing the pervasiveness of the harassment, which gives rise to the inference of knowledge or constructive knowledge." Id. The pervasiveness analysis applicable to the fourth element is the same as that required for constructive notice under the fifth element. Vance v. Southern Bell Tel. & Tel. Co., 863 F.2d 1503, 1513 (11th Cir. 1989).

The Eleventh Circuit has indicated that application of a strict liability standard to employers is illogical in a pure hostile environment setting. Steele, 867 F.2d at 1316. However, the Eleventh Circuit has acknowledged that, even in pure hostile environment cases, the trier of fact must determine whether the harasser was acting as an agent of the employer, in which case the employer is directly liable and the plaintiff need not show either actual or constructive notice. Huddleston v. Roger Dean Chevrolet, Inc., 845 F.2d 900, 904 (11th Cir. 1988) (following Meritor Savings Bank v. Vinson, 477 U.S. 57, 71, 91 L. Ed. 2d 49, 106 S. Ct. 2399 (1986), where the Supreme Court said agency principles apply to the determination of corporate liability under Title VII). See also Vance, 863 F.2d at 1514-15. In making this agency determination, the trier of fact must consider not only the supervisor's direct authority over the plaintiff but also the overall structure of the workplace, including the relative positions of the parties involved. Relevant questions regarding this relationship include the supervisor's authority to: designate work assignments and staffing of shifts, to suspend employees, to place discipline reports in employee personnel files, to handle union grievance

proceedings, and to make personnel changes in his department. Id. at 1515.

The Court has found that the City had no actual knowledge of Terry's and Silverman's sexual harassment prior to Personnel Director Richard Bender's receipt of Ewanchew's letter. The Court, however, has found Terry's and Silverman's conduct sufficiently severe or pervasive to alter the conditions of Faragher's employment and create an abusive working environment. This finding of pervasiveness supports an inference of knowledge, or constructive knowledge, on the part of the City regarding Terry's and Silverman's sexual harassment, making the City indirectly liable for such conduct.

In addition to considering indirect liability through constructive notice, the Court must determine whether the City is directly liable for Terry's and Silverman's conduct under agency principles. The Court has found that Terry, Silverman, and Gordon were all supervisors of the City's ocean lifeguards. In making this determination, the Court has considered all of the testimony related to these individuals' duties and authority toward the lifeguards. As Marine Safety Chief, Terry had the authority to supervise all aspects of the lifeguards' work assignments, to conduct counseling and oral reprimands and place reports of such disciplinary actions in the lifeguards' personnel files. Terry also interviewed and selected new lifeguards, subject to approval by higher management. As lieutenant and later, as captain, Silverman had supervisory responsibility over the lifeguards' daily duties, including designation of the lifeguards' work assignments and staffing of shifts, and supervision of their physical fitness routines. Gordon had similar responsibilities as lieutenant and, later, training captain. Moreover, the paramilitary configuration of the

Marine Safety Section constitutes evidence of a clear chain of command from lieutenants to captains to the chief. Through this chain of command, the City vested in the Marine Safety supervisors both administrative and disciplinary authority over the lifeguards. Indeed, the lifeguards' contacts with higher city officials, such as the Recreation Superintendent, were almost non-existent. [1]

Taking into consideration this overall workplace structure, as well as their supervisory authority, the Court finds that Terry, Silverman, and Gordon were agents of the City. Because the two harassers in this action, Terry and Silverman, were acting as agents of the City, the City is directly liable and Faragher need not show either actual or constructive notice of the harassing conduct on the part of the City. Moreover, although not a harasser himself, Gordon knew of the lifeguards' discomfort with Terry's and Silverman's conduct but failed to report the complaints brought to him to either Terry or to the City's management. This knowledge on the part of the City's agent, and the agent's inaction, provides a further basis for imputing liability on the City.

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1. The Court uses the past tense in this description advisedly. As noted in the findings of fact, Bill Terry no longer holds the position of Marine Safety Chief. In addition, according to testimony presented at trial, the City has effected a restructuring of the beach patrol and ancillary water recreation services under the name of "Aquatics."

Remedial action

Having found that Faragher proved a prima facie case for hostile environment sexual harassment, the Court next considers the City's defense that it took prompt remedial action upon learning of Terry's and Silverman's conduct. The Court has found that, once the City received actual knowledge of Terry's and Silverman's conduct in the form of Ewanchew's letter to Bender, the City acted with dispatch to investigate and remedy the situation. The Court, however, has found that the City should have known about the conduct prior to receipt of Ewanchew's letter through constructive notice.[2] Therefore, the Court must examine the City's efforts to prevent sexual harassment prior to Bender's investigation.

In this respect, the Court has found a complete failure on the part of the City to disseminate its written sexual harassment policy among Marine Safety Section employees. Indeed, not even the supervisors were ever told or made aware of the City's policy against sexual harassment prior to Bender's investigation. Therefore, the City's written sexual harassment policy does not excuse it from liability. The Court has also found that Faragher did not avail herself of the existing union grievance proceedings to register a complaint about Terry's and Silverman's conduct. The City's failure to disseminate its policy against sexual harassment, however, makes such avenue of complaint ineffectual. See Cronin v. United Serv. Stations, Inc., 809 F. Supp. 922,

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2. The Court has also found that the City is liable for the conduct, regardless of notice, on agency principles.

929 (M.D. Ala. 1992) (To avoid respondeat superior liability, an employer must provide some avenue by which an employee can make the employer aware of the illegal conduct.).

Having found no merit in the City's defense, the Court concludes that the City is liable for Faragher's Title VII claim. The Court has already determined that Faragher is not entitled to compensatory damages on her Title VII claim, as provided under the 1991 Civil Right Act, because the events giving rise to the claim took place prior to the enactment of the Act. See Order Granting in Part and Denying in Part Defendants' Motions to Dismiss and/or Strike, filed August 13, 1992, at 4-5. The Court has also determined that Faragher is not entitled to injunctive or declaratory relief because she is no longer employed by the City and she does not seek reinstatement of her position. See id. at 5. Therefore, the Court shall award Faragher nominal damages in the amount of one dollar.

2. Faragher's (Count II) & Ewanchew's (Count III) §1983 claims against Terry & Silverman

A § 1983 cause of action lies against a defendant who, acting under color of state law, deprives a person of rights, privileges, or immunities secured by the Constitution or laws of the United States. Bendiburg v. Dempsey, 909 F.2d 463, 468 (11th Cir. 1990). Several circuits have either explicitly or impliedly recognized the existence of a § 1983 cause of action for sexual harassment, as violative of the equal protection clause of the fourteenth amendment. See, e.g., Bohen v. City of East Chicago, 799 F.2d 1180 (7th Cir. 1986); Starrett v. Wadley, 876 F.2d 808 (10th Cir. 1989); Headley v. Bacon, 828 F.2d 1272 (8th Cir. 1987); Pontarelli v. Stone, 930 F.2d 104 (1st Cir. 1991); Carrero v. New York City Hous.

Auth., 890 F.2d 569 (2d Cir. 1989); Poe v. Haydon, 853 F.2d 418 (6th Cir. 1988). Although the Eleventh Circuit has not yet addressed this precise issue, the Court has determined, based on the weight of authority from other circuits, that such a cause of action is cognizable.

A. Color of state law:

A person acts under color of state law when his or her actions are "fairly attributable to the State," that is, when the person's "official character is such as to lend the weight of the State to his [or her] decisions." Burch v. Apalachee Community Mental Health Servs., Inc., 840 F.2d 797, 803 (11th Cir. 1988) (citations omitted). The Court has found that both Terry and Silverman were supervisors of the lifeguards, including Faragher and Ewanchew. Such supervisory authority lent the weight of the City to their decisions and conduct toward the plaintiffs. Therefore, the Court concludes that Terry and Silverman acted under color of state law.

B. Violation of the plaintiffs' constitutional right to equal protection:

In Trautvetter v. Quick, 916 F.2d 1140 (7th Cir. 1990), the Seventh Circuit has provided a comprehensive analysis regarding the equal protection element of a § 1983 cause of action. According to Trautvetter, a plaintiff wishing to sustain an equal protection claim of sexual harassment must show both "sexual harassment and an intent to harass based upon that plaintiff's membership in a particular class of citizens--i.e. male or female." The "harassment" prong is met by showing actionable harassment under Title VII. The "intent" prong requires proof that the defendant's discriminatory conduct was intentional; that is, the conduct was because of the

plaintiff's status as a male or female, rather than because of some other personal characteristic. Id. at 1150.

Faragher's § 1983 claim

Faragher has proved a Title VII claim against the City based on Terry's and Silverman's conduct. Therefore, Faragher has met the harassment prong of her § 1983 claim against the individual defendants. The Court also finds that Terry's and Silverman's discriminatory conduct was intentional because it was directed to Faragher due to her status as a female. Indeed, the credible testimony of all of the female lifeguard witnesses leads the Court to the conclusion that Terry and Silverman preyed on the female members of the Marine Safety Section. Therefore, the Court finds that Faragher has proved her § 1983 claims against both Terry and Silverman.

As a defense to Faragher's § 1983 claim, Terry argues that he is protected by qualified immunity because his conduct did not violate clearly established law. "Qualified immunity protects government officials performing discretionary functions from civil liability if their conduct violates 'no clearly established statutory or constitutional rights of which a reasonable person would have known.'" Post v. City of Fort Lauderdale, 7 F.3d 1552, 1556 (11th Cir. 1993) (quoting Harlow v. Fitzgerald, 457 U.S. 800, 818, 73 L. Ed. 2d 396, 102 S. Ct. 2727 (1982)). In addressing this issue, the Court follows the two-step analysis established by the Eleventh Circuit:

> We must determine (1) whether the official established that he or she acted within the scope of discretionary authority when the allegedly wrongful acts occurred, and (2) whether the

plaintiff demonstrated that the official's actions violated clearly established rights.

Sims v. Metropolitan Dade County, 972 F.2d 1230, 1236 (11th Cir. 1992). Terry has not shown that he acted within the scope of his discretionary authority as Marine Safety Chief when he sexually harassed Faragher. Indeed, it is difficult for the Court to conceive of a situation where a supervisor's discretionary authority includes uninvited touching of subordinates. Thus, Terry does not satisfy the first prong of the qualified immunity analysis. The Court further finds that Terry has not met the second prong of the qualified immunity inquiry. The statutory right to be free of discrimination based upon sex in the workplace is embodied in Title VII of the 1964 Civil Rights Act. Moreover, since 1986, a § 1983 cause of action for sexual harassment, as violative of the equal protection clause of the fourteenth amendment, has been recognized by the Seventh Circuit. See e.g., Bohen v. City of East Chicago, 799 F.2d 1180 (7th Cir. 1986). None of the circuits that have addressed this issue since Bohen have found otherwise. Therefore, during the time of Faragher's tenure with the City, from 1985 to 1990, a reasonable person would have known that sexual harassment violates clearly established law. See Andrews v. City of Philadelphia, 895 F.2d 1469, 1479 (3d Cir. 1990).[3] Based

3. In Woodward v. City of Worland, 977 F.2d 1392 (10th Cir. 1992), cert. denied sub nom Woodard [sic] v. Seghetti, 125 L. Ed. 2d 724, 113 S. Ct. 3038 (1993), the Tenth Circuit disagreed with the Andrews court's analysis and found that the law on this matter was not clearly established in the Tenth Circuit until that circuit explicitly found a § 1983 cause of action for sexual harassment in 1989. Were the Court to follow this reasoning, it would have to find that the law will not be clearly established in the Eleventh Circuit until the Eleventh Circuit addresses this issue. The Court finds such an approach toward the advance of the law too

on the foregoing analysis, the Court finds no merit in Terry's qualified immunity defense. Hence, the Court finds that Terry and Silverman are liable for Faragher's § 1983 claims against them.

Ewanchew's § 1983 claim

The Court next evaluates Ewanchew's proof to determine whether she has made out a Title VII claim, as required by the first prong of a § 1983 cause of action for sexual harassment. Like Faragher, Ewanchew presents a hostile environment claim. As previously noted, the elements of a prima facie case for hostile environment sexual harassment are:

(1) the employee belongs to a protected group;

(2) the employee was subject to unwelcome sexual harassment;

(3) the harassment complained of was based upon sex;

(4) the harassment complained of affected a "term, condition, or privilege" of employment; and

(5) respondeat superior.

Henson v. City of Dundee, 682 F.2d 897, 903-05 (11th Cir. 1982).

parsimonious. The Court, therefore, adopts the reasoning in Andrews.

As in the case of Faragher, the first three elements can be addressed in short order. As a female, Ewanchew belongs to a protected group. Ewanchew was subject to unwelcome sexual harassment by Terry in the form of uninvited touching on the buttocks and on one breast, and in the form of offensive language, when referring to Faragher as being "male-like" because she had no breasts. Ewanchew was also subject to unwelcome sexual harassment by Silverman in the form of offensive comments such as, "There are a lot of tits on the beach today," and in the form of an offensive pantomime mimicking cunnilingus. Terry and Silverman directed their conduct toward the female lifeguards and secretaries in the Marine Safety Section. Thus, the harassment complained of by Ewanchew was based upon her being a female. Moreover, the respondeat superior analysis conducted by the Court in connection with Faragher's Title VII claim is directly applicable to Ewanchew. Therefore, to determine whether Ewanchew has made out a Title VII claim, the Court need only address the fourth element of the prima facie case, whether the harassment complained of affected a "term, condition, or privilege" of Ewanchew's employment.

In conducting this inquiry under Faragher's Title VII claim, the Court has found that Terry's and Silverman's conduct created an abusive working environment. In reaching this determination, the Court found that Terry's and Silverman's conduct was fairly frequent and severe, that such conduct is humiliating to women and that it unreasonably interferes with a female lifeguard's work performance. As with Faragher, however, the Court has found it difficult to gauge the effect of this environment upon Ewanchew. As previously noted, the Court finds credible Ewanchew's allegations of conduct by both Terry and Silverman, but finds not

credible her present assertion that she found such conduct intolerable, then. Indeed, Ewanchew's request for a part-time job after she left the City's employ makes it illogical to find a perception of hostility in the work environment on her part. As noted by the United States Supreme Court in Harris v. Forklift Systems, Inc., 126 L. Ed. 2d 295, 114 S. Ct. 367, 370 (1993), "[I]f the victim does not subjectively perceive the environment to be abusive, the conduct has not actually altered the conditions of the victim's employment, and there is no Title VII violation." Because an evaluation of Ewanchew's testimony leads the Court to conclude that she did not perceive the environment as abusive, the Court finds that Ewanchew has failed to establish the fourth element of a Title VII claim. Therefore, Ewanchew cannot satisfy the harassment prong of her § 1983 claim against Terry and Silverman. Hence, the Court finds that Terry and Silverman are not liable for Ewanchew's § 1983 claims against them.

3. Faragher's (Count IV) and Ewanchew's (Count V) battery claims against Terry

"To establish a battery, a plaintiff must suffer a harmful or offensive contact, and the tortfeasor must have intended to cause such contact. The intent may be established if the plaintiff demonstrates the tortfeasor acted with reckless disregard of the consequences of his act." Chorak v. Naughton, 409 So. 2d 35, 39 (Fla. 2d DCA 1981). The proven instances of Terry's uninvited touching of Faragher and Ewanchew constitute offensive contacts. Moreover, Terry's proven propensity to touch female employees on various parts of their anatomies, including the waist, neck, and buttocks, shows that he acted in reckless disregard for the consequence of his acts. Therefore, the Court has no difficulty in concluding that

Terry is liable for both Faragher's and Ewanchew's battery claims against him.

4. Faragher's (Count VI) and Ewanchew's (Count VII) claims for negligent retention and supervision of Terry against the City

"Negligent retention of an employee occurs when, during the course of employment, the employer becomes aware or should have become aware of problems with the employee that indicate his unfitness, but the employer fails to take further action, such as investigation, discharge, or reassignment." Tallahassee Furniture Co., Inc. v. Harrison, 583 So. 2d 744, 753 (Fla. 1st DCA 1991), rev. denied, 595 So. 2d 558 (Fla. 1992) (citing Garcia v. Duffy, 492 So. 2d 435, 438 (Fla. 2d DCA 1986)). This actual or constructive notice requirement applies equally to claims for negligent supervision. M.V. v. Gulf Ridge Council Boy Scouts of America, Inc., 529 So. 2d 1248, 1248 (Fla. 2d DCA 1988). The establishment of a wrongful act, such as battery, by an employee is required in order to impose negligence liability upon an employer for negligent supervision and retention. See Walsingham v. Browning, 525 So. 2d 996, 998 (Fla. 1st DCA 1988).

Both Faragher and Ewanchew have proven their claims of battery against Terry. This wrongful act establishes one necessary element of negligent supervision and retention of Terry by the City. The other element is actual or constructive notice of Terry's unfitness and failure on the part of the City to take remedial action. The Court has determined that the City did not have actual notice of Terry's conduct prior to Personnel Director Richard Bender's receipt of Ewanchew's letter. The Court has also found that the City acted with dispatch to investigate Terry's conduct and to

discipline him after confirming that he had indeed engaged in inappropriate behavior. Therefore, the City is not liable for Terry's conduct under the actual notice prong of the negligent supervision and retention claims.

In examining Faragher's Title VII claim the Court found that the City should have known about Terry's and Silverman's conduct based on the pervasiveness of their conduct. The constructive notice test for negligent supervision and retention, however, does not contemplate the pervasiveness analysis of Title VII. Applying the standard of a reasonable employer to the City, the Court finds insufficient proof to establish that the City should have become aware of problems with Terry's conduct prior to Ewanchew's letter. In retrospect, it appears to the Court that the City may have given Terry too much control over Marine Safety Section. Indeed, it was obvious from the testimony of Dioli-Kumm and Gardner that these two Recreation Superintendents did not have much control over Terry. The City's restructuring of the water recreation services into a new "Aquatics" organization and the removal of Terry from supervisory duties provide further support for this assessment. Nevertheless, in light of the events that transpired prior to Ewanchew's letter, the Court does not find a sufficient predicate to impose constructive notice of Terry's conduct on the City. Therefore, the Court finds that Faragher and Ewanchew did not prove their claims of negligent supervision and retention of Terry against the City.

5. Damages

The Court awards nominal damages of one dollar to Faragher on her Title VII claim against the City. Faragher is also entitled to compensatory damages against Terry and Silverman on her § 1983 claim, and against

Terry on her battery claim. The Court has found that Faragher is entitled to $ 10,000.00 in compensatory damages. Therefore, the Court awards Faragher the sum of $ 10,000.00 in compensatory damages against Terry and Silverman, jointly and severally.

Ewanchew has prevailed on her battery claim against Terry and she is entitled to compensatory damages in the sum of $ 35,000.00. Therefore, the Court awards Ewanchew the sum of $ 35,000.00 in compensatory damages against Terry.

The Court has found that Terry is liable for $ 2,500.00 in punitive damages. Because the Court has found that Ewanchew was exposed to more overt acts on the part of Terry than Faragher, the Court awards Faragher $ 500.00 and Ewanchew $ 2,000.00 in punitive damages against Terry.

CONCLUSION

Pursuant to Fed.R.Civ.P. 58, the Court shall enter its final judgment by separate order in accordance with the foregoing findings of fact and conclusions of law.

DONE AND ORDERED in Chambers, at Miami, Dade County, Florida, this 22 day of July, 1994.